

COMPLETE LEARNING SESSION

State Legislature - Learner-v2 Refreshed

UPSC complete learning session | Foundation to advanced | Concepts, evidence, practice and answer writing

State Legislature	
REHEARSED TEACHING NAVIGATOR — BASICS CORE FIRST	
01	CONSTITUTIONAL ARCHITECTURE: NO UNIFORM STATE LEGISLATURE The decisive contrast is between a unicameral legislature & Governor
02	ARTICLE 169: CREATION OR ABOLITION OF A LEGISLATIVE COUNCIL The decisive contrast is between incidental constitutional text
03	LEGISLATIVE ASSEMBLY: POPULAR CHAMBER AND CONFIDENCE CHAMBER The Governor's discretion is exclusively responsible only to the
04	LEGISLATIVE COUNCIL: COMPOSITION AND REPRESENTATIONAL LOGIC The entire sub-structure is built upon electoral source Code logic
05	DURATION: DISSOLUTION VERSUS CONTINUITY The decisive contrast is between The Council is permanent, one kind
06	QUALIFICATIONS, OATH AND DISQUALIFICATION The decisive contrast is between Article 168 requires each of
07	SESSIONS, PROROGATION AND DISSOLUTION The decisive contrast is between: Six months longest intervals
08	GOVERNOR'S ADDRESS AND MESSAGES The decisive contrast is between followed by Motion of Thanks and
09	PRESIDING OFFICERS: OFFICES AND CONTINUITY Its principal consequence is that Each House chooses its presiding
10	IMPARTIALITY AND THE SPEAKER PROBLEM Its principal consequence is that The Tenth Schedule assigns
11	QUORUM, VOTING AND VACANCIES The operative mechanism matters because question 10 members or
12	PRIVILEGES AND FREEDOM OF SPEECH Its principal consequence is that Article 168 protects members from
13	ORDINARY BILLS IN A UNICAMERAL STATE The decisive contrast is between subject to special rules, an ordinary
14	ORDINARY BILLS IN A BICAMERAL STATE Ordinary Bills in a bicameral State operates through Council's rights /
15	MONEY BILLS: ASSEMBLY MONOPOLY The decisive contrast is between Article 109 defines a State Money Bill
16	GOVERNOR'S ASSENT UNDER ARTICLES 200-201 Its principal consequence is that Under Article 201, the President may
17	ANNUAL FINANCIAL STATEMENT AND DEMANDS FOR GRANTS The decisive contrast is between The Governor causes the annual
18	FINANCIAL BILLS AND RECOMMENDATION The decisive contrast is between Speaker certification Conclusion
19	LEGISLATIVE ACCOUNTABILITY DEVICES Daily accountability is broader than government survival questions
20	COMMITTEES AND SCRUTINY Its principal consequence is that debate level scrutiny
21	ANTI-DEFECTION INSIDE THE STATE HOUSE Its principal consequence is that merger supported by at least 2/3
22	LEGISLATIVE COUNCIL VERSUS RAJYA SABHA The decisive contrast is between Money Bill Recommendations for 12
23	LEGISLATIVE COUNCIL: CASE FOR AND AGAINST Legislative Council's case for and against operates through second
24	STATE LEGISLATIVE PERFORMANCE AND THE SCRUTINY DEFICIT The decisive contrast is between 50 days delay and informal case change
25	WOMEN'S RESERVATION, DELIMITATION AND STATE ASSEMBLIES Its principal consequence is that Reservation is linked to post census
26	ARTICLES 208-212: PROCEDURE, LANGUAGE AND JUDICIAL RESTRAINT The decisive contrast is between Article 212 protects proceedings
27	FULL ARTICLES 168-212 RAPID MAP Technically, Full Articles 168-212 rapid map is analysed by relating

Original deterministic study visual; labels are explanatory, not textual quotations.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

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Major learning parts and meaningful subtopics are listed in document order. Page numbers are generated from the final PDF layout; PDF bookmarks mirror the same hierarchy.

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State Legislature - Complete Uncompressed Learning Session

Subject: Indian Polity | **Topic:** 20 | **GS-II + Prelims** | **Export date:** 2026-08-24 **Approval:** false - awaiting explicit user approval. **Evidence key:** [FACT] constitutional, judicial or officially verified proposition; [ANALYSIS] reasoned exam synthesis; [CURRENT] dated legal/current control; [LIMIT] qualification preventing overstatement.

Package method, source priority and current control

- Source order followed: basic/State-Legislature.md -> advanced/20_State-Legislature.md -> basic/Anti-Defection-Law.md -> necessary cross-links in Polity 17 and 19 -> live PRS/current legal control. Qdrant was not used.
- [FACT] The Core owner supersedes any stale or less-qualified Advanced statement.
- [CURRENT] Status is controlled to **24 August 2026, Asia/Kolkata**.
- [CURRENT] **Live official refresh, 24 August 2026:** Constitution, delimitation and assent controls were rechecked on 24 August 2026. Six States retain Legislative Councils; the 106th Amendment is commenced but not yet operational.
- [CURRENT] Six States have Legislative Councils: Andhra Pradesh, Telangana, Uttar Pradesh, Bihar, Maharashtra and Karnataka.
- [CURRENT] The Constitution (106th Amendment) Act provides one-third reservation for women in the Lok Sabha and State Legislative Assemblies, but it is not yet operational because the constitutionally required census-linked delimitation has not been completed.
- [CURRENT] Three 2026 Bills sought to use the 2011 Census, enlarge the Lok Sabha and activate reservation. The constitutional amendment Bill failed to obtain the required special majority on 17 April 2026; the connected Bills were withdrawn. They are not law.
- [CURRENT] Census 2027 has a reference date of 1 March 2027. Publication, delimitation and operational reservation dates remain unknown.
- [LIMIT] The women-reservation amendment covers the Lok Sabha and State Legislative Assemblies, not Legislative Councils.
- [CURRENT] On gubernatorial assent, the five-judge Article 143 advisory opinion of 20 November 2025 rejects court-created rigid timelines and automatic deemed assent, while allowing limited review of prolonged, unexplained and indefinite inaction.
- [LIMIT] The November 2025 opinion is advisory and did not "overrule" the April 2025 Tamil Nadu judgment. Use it as the later controlling qualification on timelines, deemed assent and limited mandamus.
- Current delimitation source: PRS Legislative Research, <https://prsindia.org/billtrack/the-delimitation-bill-2026>.
- Package target: independently answer-complete Foundation/Core, Optional Advanced refinements, more than 30 text-native visuals, two direct solved Mains PYQs, routed Prelims demands, 36 original MCQs, 12 remedial MCQs and eight original solved Mains questions.

Roadmap

Stage	Coverage	Exam outcome
Constitutional skeleton	Articles 168-177	Locates Houses, membership and sessions
Assembly	Composition, election, duration and representation	Solves direct factual questions
Council	Article 169, composition and duration	Answers the 2021 Mains PYQ
Officers and membership	Articles 178-193	Handles Speaker, quorum and disqualification
Privileges	Articles 194-195	Separates speech immunity from institutional privilege
Legislative procedure	Articles 196-201	Compares ordinary, Money and reserved Bills
Financial procedure	Articles 202-207	Tracks budget, grants and financial Bills
Procedure and courts	Articles 208-212	Explains autonomy and judicial-review limits
Accountability	Questions, motions, committees and confidence	Links procedure to responsible government
Reform	sittings, scrutiny, Speaker neutrality and Councils	Produces balanced GS-II conclusions
Workbook	PYQs, MCQs, remedials and solved Mains	Converts coverage into marks

Scope ownership and cross-links

- **Polity 17 - Parliament:** Union comparison, parliamentary devices and committee logic.
- **Polity 19 - Governor, CM and State Council:** Governor's assent, ordinance power, confidence and State executive.
- **Polity 27 - Election Commission:** election disputes, RPA and electoral machinery.
- **Polity 42 - Anti-Defection Law:** full Tenth Schedule doctrine and reforms.
- [LIMIT] This package owns the institutions and procedures of State legislatures. It supplies enough cross-linked doctrine to remain independently answer-complete without duplicating every specialist topic.

BASIC LEARNING SESSION

State Legislature	
01 CONSTITUTIONAL ARCHITECTURE: NO UNIFORM STATE LEGISLATURE The debate centres on whether a uniform legislature is desirable.	02 ARTICLE 169: CREATION OR ABOLITION OF A LEGISLATIVE COUNCIL The debate centres on whether a bicameral legislature is desirable.
03 LEGISLATIVE ASSEMBLY: POPULAR CHAMBER AND CONFIDENCE CHAMBER The Council of Ministers is collectively responsible only to the Assembly.	04 LEGISLATIVE COUNCIL: COMPOSITION AND REPRESENTATIONAL LOGIC The debate centres on whether a bicameral legislature is desirable.
05 DURATION: DISSOLUTION VERSUS CONTINUITY The debate centres on whether the Council is permanent, one-third or two-thirds.	06 QUALIFICATIONS, OATH AND DISQUALIFICATION The debate centres on whether a bicameral legislature is desirable.
07 SESSIONS, PRIORITIZATION AND DISSOLUTION The debate centres on whether a bicameral legislature is desirable.	08 GOVERNOR'S ADDRESS AND MESSAGES The debate centres on whether a bicameral legislature is desirable.
09 PRESIDING OFFICERS: OFFICES AND CONTINUITY The debate centres on whether a bicameral legislature is desirable.	10 IMPARTIALITY AND THE SPEAKER PROBLEM The debate centres on whether a bicameral legislature is desirable.
11 QUORUM, VOTING AND VACANCIES The debate centres on whether a bicameral legislature is desirable.	12 PRIVILEGES AND FREEDOM OF SPEECH The debate centres on whether a bicameral legislature is desirable.
13 ORDINARY BILLS IN A UNICAMERAL STATE The debate centres on whether a bicameral legislature is desirable.	14 ORDINARY BILLS IN A BICAMERAL STATE The debate centres on whether a bicameral legislature is desirable.
15 MONEY BILLS: ASSEMBLY MONOPOLY The debate centres on whether a bicameral legislature is desirable.	16 GOVERNOR'S ASSENT UNDER ARTICLES 200-201 The debate centres on whether a bicameral legislature is desirable.
17 ANNUAL FINANCIAL STATEMENT AND DEMANDS FOR GRANTS The debate centres on whether a bicameral legislature is desirable.	18 FINANCIAL BILLS AND RECOMMENDATION The debate centres on whether a bicameral legislature is desirable.
19 LEGISLATIVE ACCOUNTABILITY DEVICES The debate centres on whether a bicameral legislature is desirable.	20 COMMITTEES AND SCRUTINY The debate centres on whether a bicameral legislature is desirable.
21 ANTI-DEFLECTION INSIDE THE STATE HOUSE The debate centres on whether a bicameral legislature is desirable.	22 LEGISLATIVE COUNCIL VERSUS RAJYA SABHA The debate centres on whether a bicameral legislature is desirable.
23 LEGISLATIVE COUNCIL: CASE FOR AND AGAINST The debate centres on whether a bicameral legislature is desirable.	24 STATE LEGISLATIVE PERFORMANCE AND THE SCRUTINY DEFICIT The debate centres on whether a bicameral legislature is desirable.
25 WOMEN'S RESERVATION, DELIMITATION AND STATE ASSEMBLIES The debate centres on whether a bicameral legislature is desirable.	26 ARTICLES 208-212: PROCEDURE, LANGUAGE AND JUDICIAL RESTRAINT The debate centres on whether a bicameral legislature is desirable.
27 FULL ARTICLES 168-212 RAPID MAP Technically, full articles 168-212 rapid map is avoided by reading.	

Distinct embedded teaching-navigation image. The separate continuous Cārvāka-style flowchart package remains an independent at-a-glance artifact.

SESSION 1 - CONSTITUTIONAL ARCHITECTURE: NO UNIFORM STATE LEGISLATURE

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Constitutional architecture: no uniform State legislature denotes the constitutional rules and institutional links organised around Governor (constitutional component).

Technical definition: The decisive contrast is between A unicameral legislature is Governor plus Assembly; a bicameral legislature is Governor plus Assembly plus Council and State bicameralism is optional and asymmetric.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

A State legislature constitutionally includes the Governor and may be unicameral or bicameral, but the Governor is not a member of either House.

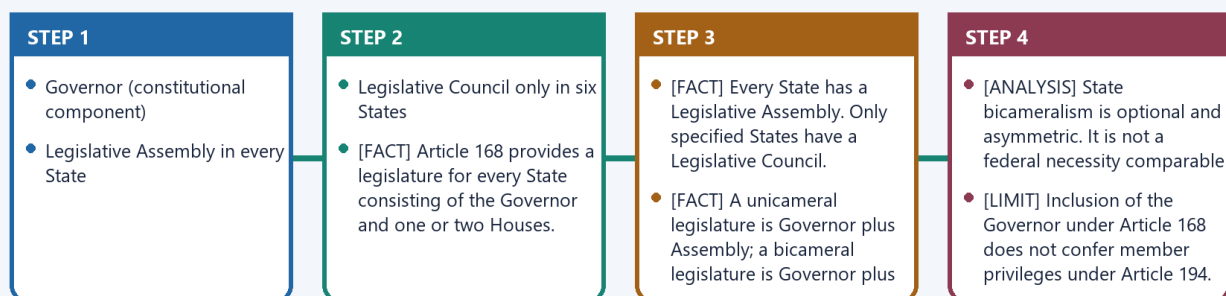
MUST-WRITE KEYWORDS

- Constitutional architecture
- no uniform State legislature
- Mnemonic
- K
- Karnataka
- Andhra Pradesh

How to use them: Frame the answer through Constitutional architecture; define no uniform State legislature, connect Mnemonic with K to explain the mechanism, and use Karnataka for the decisive comparison or qualification.

Constitutional architecture: no uniform State legislature denotes the constitutional rules and institutional links organised around Governor (constitutional component). Constitutional architecture: no uniform State legislature operates through Legislative Assembly in every State, connected with Legislative Council only in six States. The operative mechanism matters because [FACT] Article 168 provides a legislature for every State consisting of the Governor and one or two Houses. Its principal consequence is that [FACT] Every State has a Legislative Assembly. Only specified States have a Legislative Council. The decisive contrast is between [FACT] A unicameral legislature is Governor plus Assembly; a bicameral legislature is Governor plus Assembly plus Council and [ANALYSIS] State bicameralism is optional and asymmetric. It is not a federal necessity comparable to the Rajya Sabha. The exam-safe limitation is that [LIMIT] Inclusion of the Governor under Article 168 does not confer member privileges under Article 194.

CONSTITUTIONAL ARCHITECTURE: NO UNIFORM STATE LEGISLATURE



Topic-specific visual map: Constitutional architecture: no uniform State legislature.

Visual 1 - Article 168 structure

```

STATE LEGISLATURE
|
+-- Governor (constitutional component)
|
+-- Legislative Assembly in every State
|
+-- Legislative Council only in six States
  
```

Caption: A State legislature includes the Governor, but the Governor is not a member of either House.

- [FACT] Article 168 provides a legislature for every State consisting of the Governor and one or two Houses.
- [FACT] Every State has a Legislative Assembly. Only specified States have a Legislative Council.
- [FACT] A unicameral legislature is Governor plus Assembly; a bicameral legislature is Governor plus Assembly plus Council.
- [ANALYSIS] State bicameralism is optional and asymmetric. It is not a federal necessity comparable to the Rajya Sabha.
- [LIMIT] Inclusion of the Governor under Article 168 does not confer member privileges under Article 194.

Visual 2 - Six bicameral States

Mnemonic	State
K	Karnataka
A	Andhra Pradesh
T	Telangana
B	Bihar
U	Uttar Pradesh
M	Maharashtra

Mnemonic: KATBUM - the six States with Legislative Councils.

- [FACT] Jammu and Kashmir's Legislative Council was abolished through the 2019 reorganisation framework.
- [FACT] Tamil Nadu's 2010 Council-creation legislation was not brought into force.

- [LIMIT] Proposals or Assembly resolutions for a Council do not themselves create one. Parliament must enact the Article 169 law.

CLOSING RECALL FLOW - CONSTITUTIONAL ARCHITECTURE: NO UNIFORM STATE LEGISLATURE

SUBTOPIC CLOSURE FLOW | Constitutional architecture: no uniform State legislature

1. KEY TERMS / DEFINITIONS

Constitutional architecture · no uniform State legislature · Mnemonic · K · Karnataka · Andhra Pradesh

2. MECHANISM / ARGUMENT

The operative mechanism matters because Article 168 provides a legislature for every State consisting of the Governor and one or two Houses.

3. CONSEQUENCE / CONTRAST

The decisive contrast is between A unicameral legislature is Governor plus Assembly; a bicameral legislature is Governor plus Assembly plus Council and State bicameralism is optional and asymmetric.

4. UPSC TRAP / ANSWER-USE

Do not miss this limiting distinction: its principal consequence is that Every State has a Legislative Assembly.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: A State legislature constitutionally includes the Governor and may be unicameral or bicameral, but the Governor is not a member of either House.

SESSION 2 - ARTICLE 169: CREATION OR ABOLITION OF A LEGISLATIVE COUNCIL

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Article 169: creation or abolition of a Legislative Council denotes the constitutional rules and institutional links organised around State Legislative Assembly.

Technical definition: The decisive contrast is between Incidental constitutional-text changes allowed and without using Article 368.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Article 169 lets a specially supported Assembly resolution initiate Council creation or abolition, but Parliament retains legislative choice and acts outside Article 368.

MUST-WRITE KEYWORDS

- **Article 169**
- **creation or abolition of a Legislative Council**
- **Assembly resolution**
- **Total-membership majority plus two-thirds present and voting**
- **Parliamentary law**
- **Simple/ordinary majority**

How to use them: Frame the answer through Article 169; define creation or abolition of a Legislative Council, connect Assembly resolution with Total-membership majority plus two-thirds present and voting to explain the mechanism, and use Parliamentary law for the decisive comparison or qualification.

Article 169: creation or abolition of a Legislative Council denotes the constitutional rules and institutional links organised around State Legislative Assembly. Article 169: creation or abolition of a Legislative Council operates through passes special-majority resolution, connected with Parliament may enact a law. The operative mechanism matters because by ordinary/simple majority. Its principal consequence is that council created or abolished. The decisive contrast is between Incidental constitutional-text changes allowed and without using Article 368. The exam-safe limitation is that [FACT] The Assembly resolution requires.

ARTICLE 169: CREATION OR ABOLITION OF A LEGISLATIVE COUNCIL

AXIS 1

- State Legislative Assembly
- passes special-majority resolution
- Parliament may enact a law

AXIS 2

- by ordinary/simple majority
- Council created or abolished
- Incidental constitutional-text changes allowed

AXIS 3

- without using Article 368
- [FACT] The Assembly resolution requires

Topic-specific visual map: Article 169: creation or abolition of a Legislative Council.

Visual 3 - Article 169 sequence

State Legislative Assembly
passes special-majority resolution

↓

Parliament may enact a law
by ordinary/simple majority

↓

Council created or abolished

↓

Incidental constitutional-text changes allowed
without using Article 368

- [FACT] The Assembly resolution requires:
 - a majority of the total membership of the Assembly; and
 - a majority of not less than two-thirds of members present and voting.
- [FACT] Parliament may then provide by law for creation or abolition.
- [FACT] Parliament passes that law by ordinary legislative majority.
- [FACT] Article 169 expressly prevents the law from being treated as a constitutional amendment for Article 368.
- [LIMIT] Parliament is enabled, not mechanically compelled, by the Assembly resolution.
- [ANALYSIS] The design lets each State express institutional preference while preserving Parliament's final law-making control.

Visual 4 - Majority trap

Stage	Required majority
Assembly resolution	Total-membership majority plus two-thirds present and voting
Parliamentary law	Simple/ordinary majority
State ratification under Article 368	Not required

UPSC trap: The special majority belongs to the initiating Assembly resolution, not to Parliament's later Article 169 Act.

CLOSING RECALL FLOW - ARTICLE 169: CREATION OR ABOLITION OF A LEGISLATIVE COUNCIL

SUBTOPIC CLOSURE FLOW | Article 169: creation or abolition of a Legislative Council

1. KEY TERMS / DEFINITIONS

Article 169 · creation or abolition of a Legislative Council · Assembly resolution · Total-membership majority plus two-thirds present and voting · Parliamentary law · Simple/ordinary majority

2. MECHANISM / ARGUMENT

Parliament is enabled, not mechanically compelled, by the Assembly resolution.

3. CONSEQUENCE / CONTRAST

The decisive contrast is between incidental constitutional-text changes allowed and without using Article 368.

4. UPSC TRAP / ANSWER-USE

The Assembly resolution requires a majority of the total membership of the Assembly; and a majority of not less than two-thirds of members present and voting.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Article 169 lets a specially supported Assembly resolution initiate Council creation or abolition, but Parliament retains legislative choice and acts outside Article 368.

SESSION 3 - LEGISLATIVE ASSEMBLY: POPULAR CHAMBER AND CONFIDENCE CHAMBER

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Legislative Assembly: popular chamber and confidence chamber denotes the constitutional rules and institutional links organised around direct territorial election.

Technical definition: The Council of Ministers is collectively responsible only to the Legislative Assembly under Article 164(2).

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Direct election plus confidence control makes the Assembly the democratic and political centre of State government.

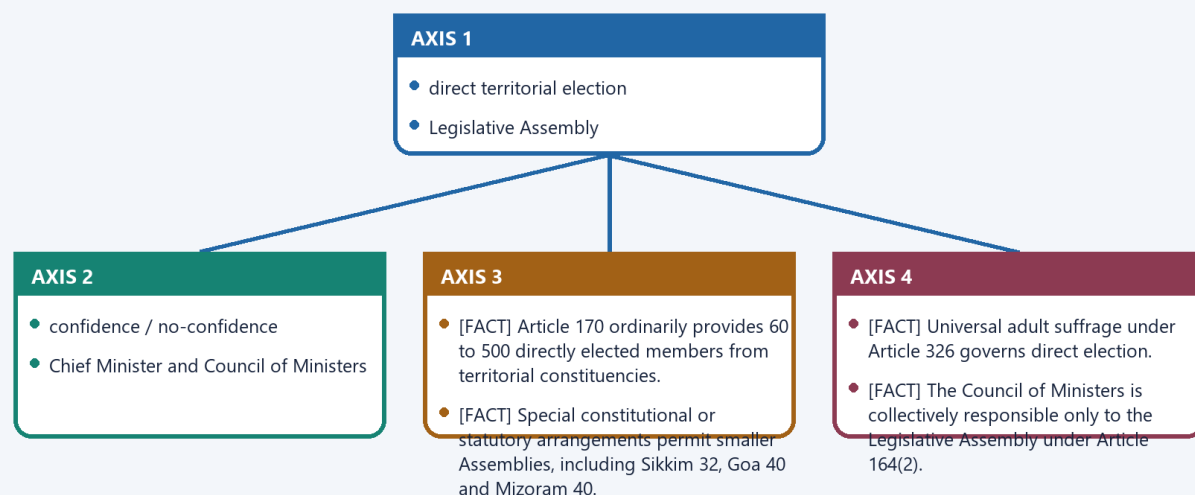
MUST-WRITE KEYWORDS

- Legislative Assembly
- popular chamber
- confidence chamber
- Territorial constituencies
- Direct election
- Population-seat readjustment

How to use them: Frame the answer through Legislative Assembly; define popular chamber, connect confidence chamber with Territorial constituencies to explain the mechanism, and use Direct election for the decisive comparison or qualification.

Legislative Assembly: popular chamber and confidence chamber denotes the constitutional rules and institutional links organised around direct territorial election. Legislative Assembly: popular chamber and confidence chamber operates through Legislative Assembly, connected with confidence / no-confidence. The operative mechanism matters because chief Minister and Council of Ministers. Its principal consequence is that [FACT] Article 170 ordinarily provides 60 to 500 directly elected members from territorial constituencies. The decisive contrast is between [FACT] Special constitutional or statutory arrangements permit smaller Assemblies, including Sikkim 32, Goa 40 and Mizoram 40 and [FACT] Universal adult suffrage under Article 326 governs direct election. The exam-safe limitation is that [FACT] The Council of Ministers is collectively responsible only to the Legislative Assembly under Article 164(2).

LEGISLATIVE ASSEMBLY: POPULAR CHAMBER AND CONFIDENCE CHAMBER



Topic-specific visual map: Legislative Assembly: popular chamber and confidence chamber.

Visual 5 - Democratic chain

Adult citizens
|
direct territorial election
|
Legislative Assembly
|
confidence / no-confidence
|
Chief Minister and Council of Ministers

- [FACT] Article 170 ordinarily provides 60 to 500 directly elected members from territorial constituencies.
- [FACT] Special constitutional or statutory arrangements permit smaller Assemblies, including Sikkim 32, Goa 40 and Mizoram 40.
- [FACT] Universal adult suffrage under Article 326 governs direct election.
- [FACT] The Council of Ministers is collectively responsible only to the Legislative Assembly under Article 164(2).
- [ANALYSIS] Direct election plus confidence control makes the Assembly the democratic and political centre of State government.

Visual 6 - Representation controls

Control	Position
Territorial constituencies	Direct election
Population-seat readjustment	Frozen until relevant figures of first census after 2026 are published
SC/ST reservation	Constitutionally protected and population-linked
Anglo-Indian nomination	Lapsed under the 104th Amendment
Women's reservation	Constitutionally provided, not yet operational

- [FACT] The 84th Amendment continued the freeze on total seat readjustment until publication of the first census taken after 2026.
- [LIMIT] The year 2026 did not itself trigger delimitation.
- [CURRENT] The 2026 legislative package that sought an earlier route using the 2011 Census failed; the existing constitutional sequence remains controlling.

CLOSING RECALL FLOW - LEGISLATIVE ASSEMBLY: POPULAR CHAMBER AND CONFIDENCE CHAMBER

SUBTOPIC CLOSURE FLOW | Legislative Assembly: popular chamber and confidence chamber

1. KEY TERMS / DEFINITIONS

Legislative Assembly · popular chamber · confidence chamber · Territorial constituencies · Direct election · Population-seat readjustment

2. MECHANISM / ARGUMENT

The exam-safe limitation is that The Council of Ministers is collectively responsible only to the Legislative Assembly under Article 164(2).

3. CONSEQUENCE / CONTRAST

The decisive contrast is between Special constitutional or statutory arrangements permit smaller Assemblies, including Sikkim 32, Goa 40 and Mizoram 40 and Universal adult suffrage under Article 326 governs direct election.

4. UPSC TRAP / ANSWER-USE

The year 2026 did not itself trigger delimitation. [CURRENT] The 2026 legislative package that sought an earlier route using the 2011 Census failed; the existing constitutional sequence remains controlling.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Direct election plus confidence control makes the Assembly the democratic and political centre of State government.

SESSION 4 - LEGISLATIVE COUNCIL: COMPOSITION AND REPRESENTATIONAL LOGIC

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Legislative Council: composition and representational logic denotes the constitutional rules and institutional links organised around 1/3 local authorities.

Technical definition: The exam-safe limitation is that share Electoral source Core logic.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Council strength cannot exceed one-third of the Assembly strength and cannot ordinarily be below 40.

MUST-WRITE KEYWORDS

- Legislative Council
- composition
- representational logic
- Municipalities, district boards and other specified local authorities
- Local-government voice
- 1/3

How to use them: Frame the answer through Legislative Council; define composition, connect representational logic with Municipalities, district boards and other specified local authorities to explain the mechanism, and use Local-government voice for the decisive comparison or qualification.

Legislative Council: composition and representational logic denotes the constitutional rules and institutional links organised around 1/3 local authorities. Legislative Council: composition and representational logic operates through 1/3 elected by MLAs from non-MLAs, connected with 1/6 nominated by Governor. The operative mechanism matters because [FACT] Council strength cannot exceed one-third of the Assembly strength and cannot ordinarily be below 40. Its principal consequence is that [FACT] Five-sixths are indirectly elected and one-sixth are nominated. The decisive contrast is between [FACT] Elected categories use proportional representation by means of the single transferable vote and [LIMIT] "Education" is not the exact constitutional category; "literature" and "science" are. The exam-safe limitation is that share Electoral source Core logic. **Visual 7 - Article 171 composition wheel**

1/3 local authorities
1/12 graduates
1/12 teachers
1/3 elected by MLAs from non-MLAs
1/6 nominated by Governor

- [FACT] Council strength cannot exceed one-third of the Assembly strength and cannot ordinarily be below 40.
- [FACT] Five-sixths are indirectly elected and one-sixth are nominated.
- [FACT] Elected categories use proportional representation by means of the single transferable vote.
- [FACT] Governor-nominated members possess special knowledge or practical experience in literature, science, art, the cooperative movement or social service.
- [LIMIT] "Education" is not the exact constitutional category; "literature" and "science" are.

Visual 8 - Electoral colleges

Share	Electoral source	Core logic
1/3	Municipalities, district boards and other specified local authorities	Local-government voice
1/12	Graduates of prescribed standing	Functional constituency
1/12	Teachers of prescribed standing in qualifying institutions	Functional constituency
1/3	MLAs elect non-MLAs	Assembly-linked membership
1/6	Governor nominates	Expertise and public service

- [ANALYSIS] The Council mixes territorial-local, occupational, Assembly-mediated and expert representation.
- [ANALYSIS] This diversity can improve scrutiny, but old graduate/teacher franchise categories invite reform questions about contemporary representativeness.

CLOSING RECALL FLOW - LEGISLATIVE COUNCIL: COMPOSITION AND REPRESENTATIONAL LOGIC

SUBTOPIC CLOSURE FLOW | Legislative Council: composition and representational logic

1. KEY TERMS / DEFINITIONS

Legislative Council · composition · representational logic · Municipalities, district boards and other specified local authorities · Local-government voice · 1/3

2. MECHANISM / ARGUMENT

The decisive contrast is between Elected categories use proportional representation by means of the single transferable vote and "Education" is not the exact constitutional category; "literature" and "science" are.

3. CONSEQUENCE / CONTRAST

Its principal consequence is that Five-sixths are indirectly elected and one-sixth are nominated.

4. UPSC TRAP / ANSWER-USE

"Education" is not the exact constitutional category; "literature" and "science" are.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Council strength cannot exceed one-third of the Assembly strength and cannot ordinarily be below 40.

SESSION 5 - DURATION: DISSOLUTION VERSUS CONTINUITY

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Duration: dissolution versus continuity denotes the constitutional rules and institutional links organised around 5-year normal term permanent chamber.

Technical definition: The decisive contrast is between The Council is permanent; one-third retire every second year and Council continuity can preserve institutional memory when the Assembly changes abruptly.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

During a National Emergency, Parliament may extend an Assembly term one year at a time, but not beyond six months after the emergency ends.

MUST-WRITE KEYWORDS

- Duration
- dissolution versus continuity
- Article 172
- Duration: dissolution versus continuity
- Its principal consequence
- Its

How to use them: Frame the answer through Duration; define dissolution versus continuity, connect Article 172 with Duration: dissolution versus continuity to explain the mechanism, and use Its principal consequence for the decisive comparison or qualification.

Duration: dissolution versus continuity denotes the constitutional rules and institutional links organised around 5-year normal term permanent chamber. Duration: dissolution versus continuity operates through may be dissolved cannot be dissolved, connected with entire House renewed 1/3 retires every 2 years. The operative mechanism matters because member term: 6 years. Its principal consequence is that [FACT] Article 172 gives an Assembly a normal

five-year term from its first meeting unless sooner dissolved. The decisive contrast is between [FACT] The Council is permanent; one-third retire every second year and [ANALYSIS] Council continuity can preserve institutional memory when the Assembly changes abruptly. The exam-safe limitation is that 5-year normal term permanent chamber.

DURATION: DISSOLUTION VERSUS CONTINUITY

AXIS 1

- 5-year normal term permanent chamber
- may be dissolved cannot be dissolved

AXIS 2

- entire House renewed 1/3 retires every 2 years
- member term: 6 years

AXIS 3

- [FACT] Article 172 gives an Assembly a normal five-year term from its first meeting unless sooner dissolved.
- [FACT] The Council is permanent; one-third retire every second year.

AXIS 4

- [ANALYSIS] Council continuity can preserve institutional memory when the Assembly changes abruptly.

Topic-specific visual map: Duration: dissolution versus continuity.

Visual 9 - House life cycle

ASSEMBLY

5-year normal term
may be dissolved
entire House renewed

COUNCIL

permanent chamber
cannot be dissolved
1/3 retires every 2 years
member term: 6 years

- [FACT] Article 172 gives an Assembly a normal five-year term from its first meeting unless sooner dissolved.
- [FACT] During a National Emergency, Parliament may extend an Assembly term one year at a time, but not beyond six months after the emergency ends.
- [FACT] The Council is permanent; one-third retire every second year.
- [ANALYSIS] Council continuity can preserve institutional memory when the Assembly changes abruptly.

CLOSING RECALL FLOW - DURATION: DISSOLUTION VERSUS CONTINUITY

SUBTOPIC CLOSURE FLOW | Duration: dissolution versus continuity

1. KEY TERMS / DEFINITIONS

Duration · dissolution versus continuity
· Article 172 · Duration: dissolution
versus continuity · Its principal
consequence · Its

2. MECHANISM / ARGUMENT

Its principal consequence is that Article
172 gives an Assembly a normal
five-year term from its first meeting
unless sooner dissolved.

3. CONSEQUENCE / CONTRAST

The decisive contrast is between The
Council is permanent; one-third retire
every second year and Council
continuity can preserve institutional
memory when the Assembly changes
abruptly.

4. UPSC TRAP / ANSWER-USE

Do not miss this limiting distinction:
council continuity can preserve
institutional memory when the
Assembly changes abruptly.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: During a National Emergency, Parliament may extend an Assembly term one year at a time, but not beyond six months after the emergency ends.

SESSION 6 - QUALIFICATIONS, OATH AND DISQUALIFICATION

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Qualifications, oath and disqualification denotes the constitutional rules and institutional links organised around Requirement Assembly Council.

Technical definition: The decisive contrast is between Article 188 requires oath or affirmation before the Governor or a person appointed by the Governor and Sitting or voting without qualification/oath may attract the Article 193 penalty.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Tenth Schedule disputes are decided by the Speaker or Chairman, subject to judicial review.

MUST-WRITE KEYWORDS

- Qualifications
- oath
- disqualification
- Citizenship
- Indian
- Minimum age

How to use them: Frame the answer through Qualifications; define oath, connect disqualification with Citizenship to explain the mechanism, and use Indian for the decisive comparison or qualification.

Qualifications, oath and disqualification denotes the constitutional rules and institutional links organised around Requirement Assembly Council. Qualifications, oath and disqualification operates through Citizenship Indian Indian, connected with Oath/affirmation Required before sitting Required before sitting. The operative mechanism matters because other qualifications Parliamentary law Parliamentary law. Its principal consequence is that [FACT] Article 173 contains citizenship, oath and age requirements. The decisive contrast is between [FACT] Article 188 requires oath or affirmation before the Governor or a person appointed by the Governor and [FACT] Sitting or voting without qualification/oath may attract the Article 193 penalty. The exam-safe limitation is that office of profit under Union/State.

Visual 10 - Entry requirements

Requirement	Assembly	Council
Citizenship	Indian	Indian
Minimum age	25	30
Oath/affirmation	Required before sitting	Required before sitting
Other qualifications	Parliamentary law	Parliamentary law

- [FACT] Article 173 contains citizenship, oath and age requirements.
- [FACT] Article 188 requires oath or affirmation before the Governor or a person appointed by the Governor.
- [FACT] Sitting or voting without qualification/oath may attract the Article 193 penalty.

Visual 11 - Article 191 disqualifications

Office of profit under Union/State
Unsound mind declared by competent court
Undischarged insolvent
Not citizen / foreign allegiance
Disqualified by parliamentary law
Tenth Schedule defection

- [FACT] Article 191 supplies constitutional grounds; the Representation of the People Act adds statutory grounds.
- [FACT] Under Article 192, a non-defection question of member disqualification is decided by the Governor after obtaining and acting according to the Election Commission's opinion.
- [FACT] Tenth Schedule disputes are decided by the Speaker or Chairman, subject to judicial review.
- [LIMIT] Do not send a Tenth Schedule question to the Governor under Article 192.

CLOSING RECALL FLOW - QUALIFICATIONS, OATH AND DISQUALIFICATION

SUBTOPIC CLOSURE FLOW | Qualifications, oath and disqualification

1. KEY TERMS / DEFINITIONS

Qualifications · oath · disqualification · Citizenship · Indian · Minimum age

2. MECHANISM / ARGUMENT

The decisive contrast is between Article 188 requires oath or affirmation before the Governor or a person appointed by the Governor and Sitting or voting without qualification/oath may attract the Article 193 penalty.

3. CONSEQUENCE / CONTRAST

Its principal consequence is that Article 173 contains citizenship, oath and age requirements.

4. UPSC TRAP / ANSWER-USE

Do not send a Tenth Schedule question to the Governor under Article 192.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Tenth Schedule disputes are decided by the Speaker or Chairman, subject to judicial review.

SESSION 7 - SESSIONS, PROROGATION AND DISSOLUTION

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Sessions, prorogation and dissolution denotes the constitutional rules and institutional links organised around Governor summons House(s).

Technical definition: The decisive contrast is between Six months cannot intervene between the last sitting in one session and the first sitting in the next and Prorogation ends a session; adjournment suspends a sitting; dissolution ends the Assembly's life.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

The six-month rule limits the interval between successive State legislative sessions, while prorogation and dissolution remain constitutionally distinct acts.

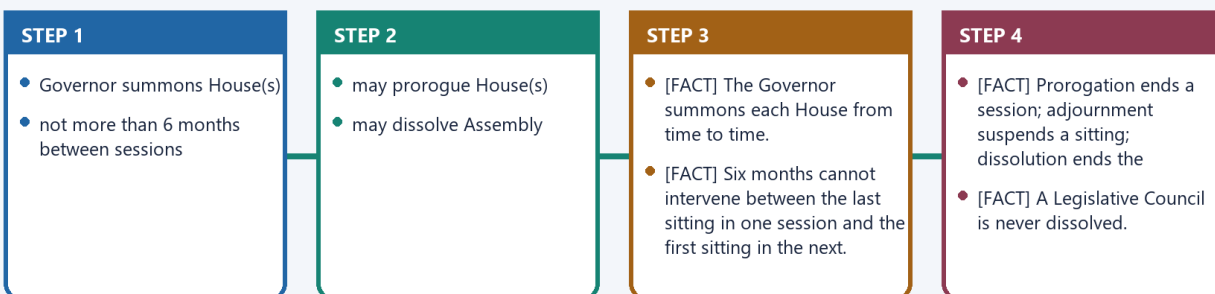
MUST-WRITE KEYWORDS

- Sessions
- prorogation
- dissolution
- Adjournment
- Presiding officer/House
- Suspends sitting

How to use them: Frame the answer through Sessions; define prorogation, connect dissolution with Adjournment to explain the mechanism, and use Presiding officer/House for the decisive comparison or qualification.

Sessions, prorogation and dissolution denotes the constitutional rules and institutional links organised around Governor summons House(s). Sessions, prorogation and dissolution operates through not more than 6 months between sessions, connected with may prorogue House(s). The operative mechanism matters because may dissolve Assembly. Its principal consequence is that [FACT] The Governor summons each House from time to time. The decisive contrast is between [FACT] Six months cannot intervene between the last sitting in one session and the first sitting in the next and [FACT] Prorogation ends a session; adjournment suspends a sitting; dissolution ends the Assembly's life. The exam-safe limitation is that [FACT] A Legislative Council is never dissolved.

SESSIONS, PROROGATION AND DISSOLUTION



Topic-specific visual map: Sessions, prorogation and dissolution.

Visual 12 - Article 174 controls

Governor summons House(s)
|
+-- not more than 6 months between sessions
|
+-- may prorogue House(s)
|
+-- may dissolve Assembly

- [FACT] The Governor summons each House from time to time.
- [FACT] Six months cannot intervene between the last sitting in one session and the first sitting in the next.
- [FACT] Prorogation ends a session; adjournment suspends a sitting; dissolution ends the Assembly's life.
- [FACT] A Legislative Council is never dissolved.
- [LIMIT] The Governor ordinarily acts on ministerial advice; Article 174 is not a general personal discretion.

Visual 13 - Terminology

Device	Authority	Effect
Adjournment	Presiding officer/House	Suspends sitting
Adjournment sine die	Presiding officer	Ends sittings without next date
Prorogation	Governor	Ends session
Dissolution	Governor constitutionally	Ends Assembly

CLOSING RECALL FLOW - SESSIONS, PROROGATION AND DISSOLUTION

SUBTOPIC CLOSURE FLOW | Sessions, prorogation and dissolution

1. KEY TERMS / DEFINITIONS

Sessions · prorogation · dissolution ·
Adjournment · Presiding officer/House
· Suspends sitting

2. MECHANISM / ARGUMENT

The decisive contrast is between Six months cannot intervene between the last sitting in one session and the first sitting in the next and Prorogation ends a session; adjournment suspends a sitting; dissolution ends the Assembly's life.

3. CONSEQUENCE / CONTRAST

Its principal consequence is that The Governor summons each House from time to time.

4. UPSC TRAP / ANSWER-USE

The Governor ordinarily acts on ministerial advice; Article 174 is not a general personal discretion.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: The six-month rule limits the interval between successive State legislative sessions, while prorogation and dissolution remain constitutionally distinct acts.

SESSION 8 - GOVERNOR'S ADDRESS AND MESSAGES

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Governor's address and messages denotes the constitutional rules and institutional links organised around address either House or both.

Technical definition: The decisive contrast is between followed by Motion of Thanks and The special address states the causes of summoning and outlines the government's programme.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Defeat on an amendment or Motion of Thanks may be politically serious, but confidence consequences depend on context and House practice.

MUST-WRITE KEYWORDS

- Governor's address
- messages
- Article 176
- Article 175
- Governor's address and messages
- 175-176

How to use them: Frame the answer through Governor's address; define messages, connect Article 176 with Article 175 to explain the mechanism, and use Governor's address and messages for the decisive comparison or qualification.

Governor's address and messages denotes the constitutional rules and institutional links organised around address either House or both. Governor's address and messages operates through send messages on pending or other matters, connected with Article 176 special address. The operative mechanism matters because first session after each general election. Its principal consequence is that first session of each year. The decisive contrast is between followed by Motion of Thanks and [FACT] The special address states the causes of summoning and outlines the government's programme. The exam-safe limitation is that [ANALYSIS] Debate on the Motion of Thanks is a broad accountability occasion, not merely ceremonial response. **Visual 14 - Articles 175-176**

Article 175

- address either House or both
- send messages on pending or other matters

Article 176 special address

- first session after each general election
- first session of each year
- followed by Motion of Thanks
- [FACT] The special address states the causes of summoning and outlines the government's programme.
- [ANALYSIS] Debate on the Motion of Thanks is a broad accountability occasion, not merely ceremonial response.
- [LIMIT] Defeat on an amendment or Motion of Thanks may be politically serious, but confidence consequences depend on context and House practice.

CLOSING RECALL FLOW - GOVERNOR'S ADDRESS AND MESSAGES

SUBTOPIC CLOSURE FLOW | Governor's address and messages

1. KEY TERMS / DEFINITIONS

Governor's address · messages · Article 176 · Article 175 · Governor's address and messages · 175-176

2. MECHANISM / ARGUMENT

The decisive contrast is between followed by Motion of Thanks and The special address states the causes of summoning and outlines the government's programme.

3. CONSEQUENCE / CONTRAST

Its principal consequence is that first session of each year.

4. UPSC TRAP / ANSWER-USE

The exam-safe limitation is that Debate on the Motion of Thanks is a broad accountability occasion, not merely ceremonial response.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Defeat on an amendment or Motion of Thanks may be politically serious, but confidence consequences depend on context and House practice.

SESSION 9 - PRESIDING OFFICERS: OFFICES AND CONTINUITY

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Presiding officers: offices and continuity denotes the constitutional rules and institutional links organised around House Presiding officer Deputy.

Technical definition: Its principal consequence is that Each House chooses its presiding and deputy presiding officer from among its members.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

A presiding officer does not preside over a motion for their own removal but may participate and vote in the first instance.

MUST-WRITE KEYWORDS

- Presiding officers
- offices
- continuity
- Assembly
- Speaker
- Deputy Speaker

How to use them: Frame the answer through Presiding officers; define offices, connect continuity with Assembly to explain the mechanism, and use Speaker for the decisive comparison or qualification.

Presiding officers: offices and continuity denotes the constitutional rules and institutional links organised around House Presiding officer Deputy. Presiding officers: offices and continuity operates through Assembly Speaker Deputy Speaker, connected with Council Chairman Deputy Chairman. The operative mechanism matters because [FACT] Articles 178-181 govern Assembly officers; Articles 182-185 govern Council officers. Its principal consequence is that [FACT] Each House chooses its presiding and deputy presiding officer from among its members. The decisive contrast is between [FACT] An Assembly Speaker resigns to the Deputy Speaker; the Deputy Speaker resigns to the Speaker and [FACT] Removal requires a resolution passed by a majority of all then members after at least 14 days' notice. The exam-safe limitation is that [FACT] The Speaker continues after dissolution until immediately before the first meeting of the next Assembly.

PRESIDING OFFICERS: OFFICES AND CONTINUITY

AXIS 1

- House Presiding officer Deputy
- Assembly Speaker Deputy Speaker
- Council Chairman Deputy Chairman

AXIS 2

- [FACT] Articles 178-181 govern Assembly officers; Articles 182-185 govern Council officers.
- [FACT] Each House chooses its presiding and deputy presiding officer from among its members.
- [FACT] An Assembly Speaker resigns to the Deputy Speaker; the Deputy Speaker resigns to the Speaker.

AXIS 3

- [FACT] Removal requires a resolution passed by a majority of all then members after at least 14 days' notice.
- [FACT] The Speaker continues after dissolution until immediately before the first meeting of the next Assembly.

Topic-specific visual map: Presiding officers: offices and continuity.

Visual 15 - Constitutional offices

House	Presiding officer	Deputy
Assembly	Speaker	Deputy Speaker
Council	Chairman	Deputy Chairman

- [FACT] Articles 178-181 govern Assembly officers; Articles 182-185 govern Council officers.
- [FACT] Each House chooses its presiding and deputy presiding officer from among its members.
- [FACT] An Assembly Speaker resigns to the Deputy Speaker; the Deputy Speaker resigns to the Speaker.
- [FACT] Removal requires a resolution passed by a majority of all then members after at least 14 days' notice.
- [FACT] The Speaker continues after dissolution until immediately before the first meeting of the next Assembly.
- [FACT] A presiding officer does not preside over a motion for their own removal but may participate and vote in the first instance.

Visual 16 - Speaker's core functions

ORDER AND PROCEDURE

- +++ interprets rules
- +++ recognises speakers
- +++ maintains discipline
- +++ decides admissibility

CONSTITUTIONAL FUNCTIONS

- +++ Money Bill certification
- +++ Tenth Schedule adjudication
- +++ casting vote when tied

CLOSING RECALL FLOW - PRESIDING OFFICERS: OFFICES AND CONTINUITY

SUBTOPIC CLOSURE FLOW | Presiding officers: offices and continuity

1. KEY TERMS / DEFINITIONS

Presiding officers · offices · continuity · Assembly · Speaker · Deputy Speaker

2. MECHANISM / ARGUMENT

The decisive contrast is between An Assembly Speaker resigns to the Deputy Speaker; the Deputy Speaker resigns to the Speaker and Removal requires a resolution passed by a majority of all then members after at least 14 days' notice.

3. CONSEQUENCE / CONTRAST

Its principal consequence is that Each House chooses its presiding and deputy presiding officer from among its members.

4. UPSC TRAP / ANSWER-USE

A presiding officer does not preside over a motion for their own removal but may participate and vote in the first instance.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: A presiding officer does not preside over a motion for their own removal but may participate and vote in the first instance.

SESSION 10 - IMPARTIALITY AND THE SPEAKER PROBLEM

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Impartiality and the Speaker problem denotes the constitutional rules and institutional links organised around Speaker remains party member.

Technical definition: Its principal consequence is that The Tenth Schedule assigns defection decisions to the Speaker/Chairman.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Kihoto Hollohan treats the presiding officer as a tribunal subject to judicial review.

MUST-WRITE KEYWORDS

- Impartiality
- the Speaker problem
- Impartiality and the Speaker problem
- Speaker
- Its principal consequence
- Its

How to use them: Frame the answer through Impartiality; define the Speaker problem, connect Impartiality and the Speaker problem with Speaker to explain the mechanism, and use Its principal consequence for the decisive comparison or qualification.

Impartiality and the Speaker problem denotes the constitutional rules and institutional links organised around Speaker remains party member. Impartiality and the Speaker problem operates through controls House agenda and recognition, connected with decides defection petitions. The operative mechanism matters because risk of partisan delay or selective urgency. Its principal consequence is that [FACT] The Tenth Schedule assigns defection decisions to the Speaker/Chairman. The decisive contrast is between [FACT] Kihoto Hollohan treats the presiding officer as a tribunal subject to judicial review and [LIMIT] The independent tribunal and statutory deadline are proposals, not enacted law. The exam-safe limitation is that [ANALYSIS] Neutrality cannot rest only on personal virtue where office incentives are partisan. **Visual 17 - Institutional tension**

Speaker remains party member
+
controls House agenda and recognition
+
decides defection petitions
=
risk of partisan delay or selective urgency

- [FACT] The Tenth Schedule assigns defection decisions to the Speaker/Chairman.
- [FACT] *Kihoto Hollohan* treats the presiding officer as a tribunal subject to judicial review.
- [FACT] *Keisham Meghachandra Singh* (2020) stated that petitions should ordinarily be decided within a reasonable period of about three months and urged Parliament to consider an independent tribunal.
- [FACT] *Subhash Desai* (2023) holds that the whip and leader recognised for Tenth Schedule purposes must be appointed by the political party, not merely a legislature-party faction.
- [LIMIT] The independent tribunal and statutory deadline are proposals, not enacted law.
- [ANALYSIS] Neutrality cannot rest only on personal virtue where office incentives are partisan.

CLOSING RECALL FLOW - IMPARTIALITY AND THE SPEAKER PROBLEM

SUBTOPIC CLOSURE FLOW Impartiality and the Speaker problem			
1. KEY TERMS / DEFINITIONS Impartiality · the Speaker problem · Impartiality and the Speaker problem · Speaker · Its principal consequence · Its	2. MECHANISM / ARGUMENT Subhash Desai (2023) holds that the whip and leader recognised for Tenth Schedule purposes must be appointed by the political party, not merely a legislature-party faction.	3. CONSEQUENCE / CONTRAST Its principal consequence is that The Tenth Schedule assigns defection decisions to the Speaker/Chairman.	4. UPSC TRAP / ANSWER-USE The decisive contrast is between Kihoto Hollohan treats the presiding officer as a tribunal subject to judicial review and The independent tribunal and statutory deadline are proposals, not enacted law.
ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Kihoto Hollohan treats the presiding officer as a tribunal subject to judicial review.			

SESSION 11 - QUORUM, VOTING AND VACANCIES

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Quorum, voting and vacancies denotes the constitutional rules and institutional links organised around Rule State House position.

Technical definition: The operative mechanism matters because quorum 10 members or one-tenth, whichever is greater.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Vacancies do not automatically paralyse a House, but disputed majorities must be tested against the effective constitutional membership and valid votes.

MUST-WRITE KEYWORDS

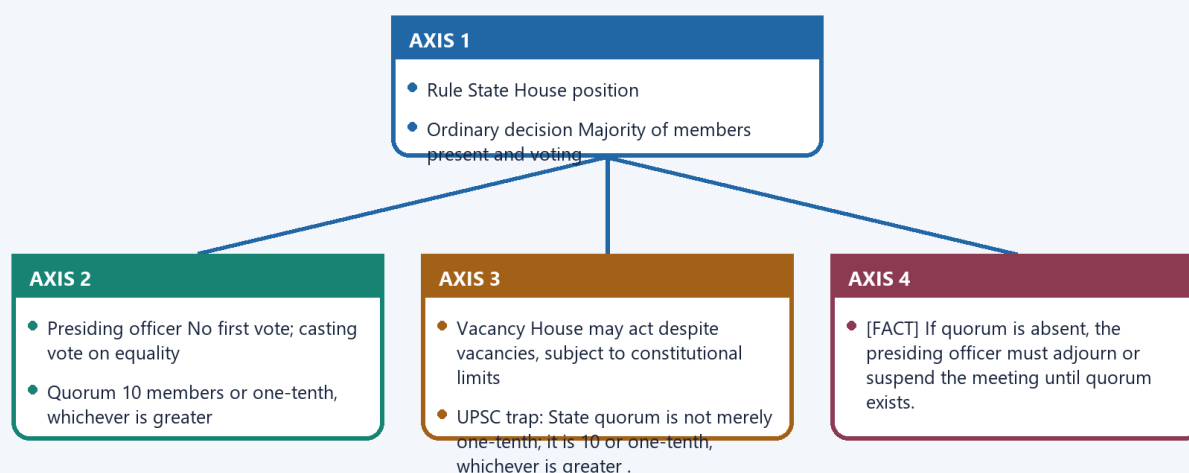
- Quorum
- voting

- vacancies
- Ordinary decision
- Majority of members present and voting
- Presiding officer

How to use them: Frame the answer through Quorum; define voting, connect vacancies with Ordinary decision to explain the mechanism, and use Majority of members present and voting for the decisive comparison or qualification.

Quorum, voting and vacancies denotes the constitutional rules and institutional links organised around Rule State House position. Quorum, voting and vacancies operates through Ordinary decision Majority of members present and voting, connected with Presiding officer No first vote; casting vote on equality. The operative mechanism matters because quorum 10 members or one-tenth, whichever is greater. Its principal consequence is that vacancy House may act despite vacancies, subject to constitutional limits. The decisive contrast is between UPSC trap: State quorum is not merely one-tenth; it is 10 or one-tenth, whichever is greater and [FACT] If quorum is absent, the presiding officer must adjourn or suspend the meeting until quorum exists. The exam-safe limitation is that rule State House position.

QUORUM, VOTING AND VACANCIES



Topic-specific visual map: Quorum, voting and vacancies.

Visual 18 - Article 189

Rule	State House position
Ordinary decision	Majority of members present and voting
Presiding officer	No first vote; casting vote on equality
Quorum	10 members or one-tenth, whichever is greater
Vacancy	House may act despite vacancies, subject to constitutional limits

UPSC trap: State quorum is not merely one-tenth; it is **10 or one-tenth, whichever is greater**.

- [FACT] If quorum is absent, the presiding officer must adjourn or suspend the meeting until quorum exists.
- [ANALYSIS] Vacancies do not automatically paralyse a House, but disputed majorities must be tested against the effective constitutional membership and valid votes.

CLOSING RECALL FLOW - QUORUM, VOTING AND VACANCIES

SUBTOPIC CLOSURE FLOW | Quorum, voting and vacancies

1. KEY TERMS / DEFINITIONS Quorum · voting · vacancies · Ordinary decision · Majority of members present and voting · Presiding officer	2. MECHANISM / ARGUMENT The operative mechanism matters because quorum 10 members or one-tenth, whichever is greater.	3. CONSEQUENCE / CONTRAST The decisive contrast is between UPSC trap: State quorum is not merely one-tenth; it is 10 or one-tenth, whichever is greater and If quorum is absent, the presiding officer must adjourn or suspend the meeting until quorum exists.	4. UPSC TRAP / ANSWER-USE State quorum is not merely one-tenth; it is 10 or one-tenth, whichever is greater.
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ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Vacancies do not automatically paralyse a House, but disputed majorities must be tested against the effective constitutional membership and valid votes.

SESSION 12 - PRIVILEGES AND FREEDOM OF SPEECH

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Privileges and freedom of speech denotes the constitutional rules and institutional links organised around Freedom of speech in legislature.

Technical definition: Its principal consequence is that Article 194 protects members from court proceedings for speech or vote in the House or committee.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

The Governor is a component of the legislature but not a House member and does not acquire Article 194 member privilege.

MUST-WRITE KEYWORDS

- Privileges
- freedom of speech
- Article 194
- Article 211
- Privileges and freedom of speech
- Freedom

How to use them: Frame the answer through Privileges; define freedom of speech, connect Article 194 with Article 211 to explain the mechanism, and use Privileges and freedom of speech for the decisive comparison or qualification.

Privileges and freedom of speech denotes the constitutional rules and institutional links organised around Freedom of speech in legislature. Privileges and freedom of speech operates through subject to Constitution and House rules, connected with immunity for vote or speech in House/committee. The operative mechanism matters because authorised publication immunity. Its principal consequence is that [FACT] Article 194 protects members from court proceedings for speech or vote in the House or committee. The decisive contrast is between [FACT] Privilege belongs to members and the House; it is not a general immunity for conduct outside legislative functions and [FACT] Article 211 bars discussion of the conduct of Supreme Court or High Court judges in discharge of duties. The exam-safe limitation is that [LIMIT] The Governor is a component of the legislature but not a House member and does not acquire Article 194 member privilege. **Visual 19 - Article 194 shield**

Freedom of speech in legislature

```

|
+-- subject to Constitution and House rules
|
+-- immunity for vote or speech in House/committee
|
+-- authorised publication immunity

```

- [FACT] Article 194 protects members from court proceedings for speech or vote in the House or committee.
- [FACT] Privilege belongs to members and the House; it is not a general immunity for conduct outside legislative functions.
- [FACT] Article 211 bars discussion of the conduct of Supreme Court or High Court judges in discharge of duties.
- [LIMIT] The Governor is a component of the legislature but not a House member and does not acquire Article 194 member privilege.

- [ANALYSIS] Privilege protects deliberative independence, not corruption or substantive constitutional illegality.

CLOSING RECALL FLOW - PRIVILEGES AND FREEDOM OF SPEECH

SUBTOPIC CLOSURE FLOW Privileges and freedom of speech			
1. KEY TERMS / DEFINITIONS Privileges · freedom of speech · Article 194 · Article 211 · Privileges and freedom of speech · Freedom	2. MECHANISM / ARGUMENT Its principal consequence is that Article 194 protects members from court proceedings for speech or vote in the House or committee.	3. CONSEQUENCE / CONTRAST The exam-safe limitation is that The Governor is a component of the legislature but not a House member and does not acquire Article 194 member privilege.	4. UPSC TRAP / ANSWER-USE The Governor is a component of the legislature but not a House member and does not acquire Article 194 member privilege.
ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: The Governor is a component of the legislature but not a House member and does not acquire Article 194 member privilege.			

SESSION 13 - ORDINARY BILLS IN A UNICAMERAL STATE

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Ordinary Bills in a unicameral State denotes the constitutional rules and institutional links organised around Introduction in Assembly.

Technical definition: The decisive contrast is between Subject to special rules, an ordinary Bill may be introduced by a minister or private member and A Bill pending in the Assembly lapses on dissolution unless constitutional doctrine provides otherwise.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Permitting ministers and private members to introduce ordinary Bills broadens legislative initiative, but special financial and procedural rules still govern relevant measures.

MUST-WRITE KEYWORDS

- Ordinary Bills in a unicameral State
- Article 200
- Ordinary Bills
- Assembly
- Its principal consequence
- Its

How to use them: Frame the answer through Ordinary Bills in a unicameral State; define Article 200, connect Ordinary Bills with Assembly to explain the mechanism, and use Its principal consequence for the decisive comparison or qualification.

Ordinary Bills in a unicameral State denotes the constitutional rules and institutional links organised around Introduction in Assembly. Ordinary Bills in a unicameral State operates through readings / debate / committee / vote, connected with passed by Assembly. The operative mechanism matters because presented to Governor under Article 200. Its principal consequence is that assent / return / withhold / reserve. The decisive contrast is between [FACT] Subject to special rules, an ordinary Bill may be introduced by a minister or private member and [FACT] A Bill pending in the Assembly lapses on dissolution unless constitutional doctrine provides otherwise. The exam-safe limitation is that [FACT] A Bill passed by the Assembly but pending with the Council ordinarily lapses on Assembly dissolution.

ORDINARY BILLS IN A UNICAMERAL STATE

AXIS 1

- Introduction in Assembly
- readings / debate / committee / vote

AXIS 2

- passed by Assembly
- presented to Governor under Article 200

AXIS 3

- assent / return / withhold / reserve
- [FACT] Subject to special rules, an ordinary Bill may be introduced by a minister or private member.

AXIS 4

- [FACT] A Bill pending in the Assembly lapses on dissolution unless constitutional doctrine provides otherwise.
- [FACT] A Bill passed by the Assembly but pending with the Council ordinarily lapses on Assembly dissolution.

Topic-specific visual map: Ordinary Bills in a unicameral State.

Visual 20 - Unicameral route

Introduction in Assembly
|
readings / debate / committee / vote
|
passed by Assembly
|
presented to Governor under Article 200
|
assent / return / withhold / reserve

- [FACT] Subject to special rules, an ordinary Bill may be introduced by a minister or private member.
- [FACT] A Bill pending in the Assembly lapses on dissolution unless constitutional doctrine provides otherwise.
- [FACT] A Bill passed by the Assembly but pending with the Council ordinarily lapses on Assembly dissolution.
- [LIMIT] Bill-lapse questions are status-sensitive; always identify the House and stage.

CLOSING RECALL FLOW - ORDINARY BILLS IN A UNICAMERAL STATE

SUBTOPIC CLOSURE FLOW | Ordinary Bills in a unicameral State

1. KEY TERMS / DEFINITIONS

Ordinary Bills in a unicameral State · Article 200 · Ordinary Bills · Assembly · Its principal consequence · Its

2. MECHANISM / ARGUMENT

The decisive contrast is between Subject to special rules, an ordinary Bill may be introduced by a minister or private member and A Bill pending in the Assembly lapses on dissolution unless constitutional doctrine provides otherwise.

3. CONSEQUENCE / CONTRAST

The exam-safe limitation is that A Bill passed by the Assembly but pending with the Council ordinarily lapses on Assembly dissolution.

4. UPSC TRAP / ANSWER-USE

Do not miss this limiting distinction: its principal consequence is that assent / return / withhold / reserve.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Permitting ministers and private members to introduce ordinary Bills broadens legislative initiative, but special financial and procedural rules still govern relevant measures.

SESSION 14 - ORDINARY BILLS IN A BICAMERAL STATE

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Ordinary Bills in a bicameral State denotes the constitutional rules and institutional links organised around Assembly passes Bill.

Technical definition: Ordinary Bills in a bicameral State operates through Council rejects / delays / amends, connected with Assembly passes again.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

A State Legislative Council can delay and suggest changes to an ordinary Bill, but the Assembly ultimately prevails without any joint-sitting mechanism.

MUST-WRITE KEYWORDS

- Ordinary Bills in a bicameral State
- Initiation
- Yes
- Yes, except Money/financial restrictions
- Final control
- No

How to use them: Frame the answer through Ordinary Bills in a bicameral State; define Initiation, connect Yes with Yes, except Money/financial restrictions to explain the mechanism, and use Final control for the decisive comparison or qualification.

Ordinary Bills in a bicameral State denotes the constitutional rules and institutional links organised around Assembly passes Bill. Ordinary Bills in a bicameral State operates through Council rejects / delays / amends, connected with Assembly passes again. The operative mechanism matters because bill deemed passed in Assembly form. Its principal consequence is that [FACT] The Council cannot permanently veto an ordinary Bill. The decisive contrast is between [FACT] Total potential delay is approximately four months: three months plus one month and [FACT] There is no joint sitting of State Houses. The exam-safe limitation is that [ANALYSIS] The Council is a suspensive or dilatory chamber, not a co-equal revising chamber. **Visual 21 - Article 197: maximum Council delay**

Assembly passes Bill
|
Council rejects / delays / amends
|
up to 3 months
|
Assembly passes again
|
Council rejects / delays / amends
|
up to 1 month
|
Bill deemed passed in Assembly form

- [FACT] The Council cannot permanently veto an ordinary Bill.
- [FACT] Total potential delay is approximately four months: three months plus one month.
- [FACT] There is no joint sitting of State Houses.
- [ANALYSIS] The Council is a suspensive or dilatory chamber, not a co-equal revising chamber.
- [LIMIT] Four months is the maximum constitutional delay across the two-stage route, not a single fixed holding period.

Visual 22 - Assembly versus Council on ordinary Bills

Feature	Assembly	Council
Initiation	Yes	Yes, except Money/financial restrictions
Final control	Yes	No
First-stage delay	Repasses	Up to 3 months
Second-stage delay	Prevails	Up to 1 month
Joint sitting	Not applicable	No joint sitting exists

CLOSING RECALL FLOW - ORDINARY BILLS IN A BICAMERAL STATE

SUBTOPIC CLOSURE FLOW | Ordinary Bills in a bicameral State

1. KEY TERMS / DEFINITIONS

Ordinary Bills in a bicameral State · Initiation · Yes · Yes, except Money/financial restrictions · Final control · No

2. MECHANISM / ARGUMENT

Ordinary Bills in a bicameral State operates through Council rejects / delays / amends, connected with Assembly passes again.

3. CONSEQUENCE / CONTRAST

Its principal consequence is that The Council cannot permanently veto an ordinary Bill.

4. UPSC TRAP / ANSWER-USE

Do not miss this limiting distinction: the decisive contrast is between Total potential delay is approximately four months.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: A State Legislative Council can delay and suggest changes to an ordinary Bill, but the Assembly ultimately prevails without any joint-sitting mechanism.

SESSION 15 - MONEY BILLS: ASSEMBLY MONOPOLY

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Money Bills: Assembly monopoly denotes the constitutional rules and institutional links organised around Governor's recommendation.

Technical definition: The decisive contrast is between Article 199 defines a State Money Bill and makes the Speaker's certificate central and A Money Bill cannot be introduced in the Council.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

A Money Bill cannot be returned by the Governor for reconsideration under Article 200.

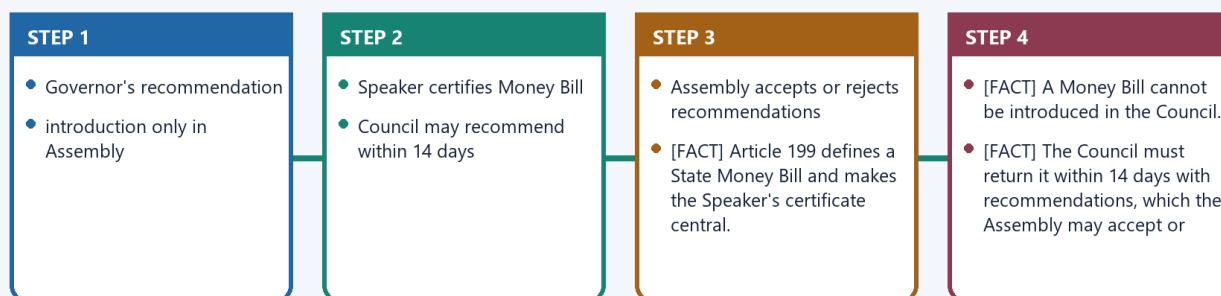
MUST-WRITE KEYWORDS

- Money Bills
- Assembly monopoly
- Council may reject
- No
- Council may amend
- Only recommend

How to use them: Frame the answer through Money Bills; define Assembly monopoly, connect Council may reject with No to explain the mechanism, and use Council may amend for the decisive comparison or qualification.

Money Bills: Assembly monopoly denotes the constitutional rules and institutional links organised around Governor's recommendation. Money Bills: Assembly monopoly operates through introduction only in Assembly, connected with Speaker certifies Money Bill. The operative mechanism matters because council may recommend within 14 days. Its principal consequence is that assembly accepts or rejects recommendations. The decisive contrast is between [FACT] Article 199 defines a State Money Bill and makes the Speaker's certificate central and [FACT] A Money Bill cannot be introduced in the Council. The exam-safe limitation is that [FACT] The Council must return it within 14 days with recommendations, which the Assembly may accept or reject.

MONEY BILLS: ASSEMBLY MONOPOLY



Topic-specific visual map: Money Bills: Assembly monopoly.

Visual 23 - Money Bill route

Governor's recommendation
|
introduction only in Assembly
|
Speaker certifies Money Bill
|
Council may recommend within 14 days
|
Assembly accepts or rejects recommendations
|
Governor

- [FACT] Article 199 defines a State Money Bill and makes the Speaker's certificate central.
- [FACT] A Money Bill cannot be introduced in the Council.
- [FACT] The Council must return it within 14 days with recommendations, which the Assembly may accept or reject.
- [FACT] If not returned within 14 days, it is deemed passed in the Assembly form.
- [FACT] A Money Bill cannot be returned by the Governor for reconsideration under Article 200.
- [ANALYSIS] The confidence chamber controls taxation, borrowing and the Consolidated Fund.

Visual 24 - Money Bill close options

Claim	Correct position
Council may reject	No
Council may amend	Only recommend
Council has 14 days	Yes
Speaker certifies	Yes
Joint sitting resolves dispute	No

CLOSING RECALL FLOW - MONEY BILLS: ASSEMBLY MONOPOLY

SUBTOPIC CLOSURE FLOW | Money Bills: Assembly monopoly

1. KEY TERMS / DEFINITIONS Money Bills · Assembly monopoly · Council may reject · No · Council may amend · Only recommend	2. MECHANISM / ARGUMENT The decisive contrast is between Article 199 defines a State Money Bill and makes the Speaker's certificate central and A Money Bill cannot be introduced in the Council.	3. CONSEQUENCE / CONTRAST If not returned within 14 days, it is deemed passed in the Assembly form.	4. UPSC TRAP / ANSWER-USE Do not miss this limiting distinction: its principal consequence is that assembly accepts or rejects recommendations.
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ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: A Money Bill cannot be returned by the Governor for reconsideration under Article 200.

SESSION 16 - GOVERNOR'S ASSENT UNDER ARTICLES 200-201

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Governor's assent under Articles 200-201 denotes the constitutional rules and institutional links organised around Bill presented to Governor.

Technical definition: Its principal consequence is that Under Article 201, the President may assent, withhold, or direct return of a non-Money Bill.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

The November 2025 Article 143 opinion rejects rigid court-written timelines and deemed assent, but prolonged unexplained inaction remains amenable to limited judicial review and a direction to decide.

MUST-WRITE KEYWORDS

- Governor's assent under Articles 200-201
- Article 201
- Article 200
- Article 143
- Governor's
- 200-201

How to use them: Frame the answer through Governor's assent under Articles 200-201; define Article 201, connect Article 200 with Article 143 to explain the mechanism, and use Governor's for the decisive comparison or qualification.

Governor's assent under Articles 200-201 denotes the constitutional rules and institutional links organised around Bill presented to Governor. Governor's assent under Articles 200-201 operates through return non-Money Bill for reconsideration, connected with reserve for President. The operative mechanism matters because [FACT] Reservation is mandatory where the Bill would so derogate from High Court powers as to endanger its constitutional position. Its principal consequence is that [FACT] Under Article 201, the President may assent, withhold, or direct return of a non-Money Bill. The decisive contrast is between [FACT] Repassage after presidentially directed return does not compel presidential assent and [LIMIT] A court may require constitutional action; it does not choose the substantive option for the Governor or President. The exam-safe limitation is that bill presented to Governor. **Visual**

25 - Four Article 200 routes

Bill presented to Governor

- |
- +-- assent
- +-- withhold assent
- +-- return non-Money Bill for reconsideration
- +-- reserve for President

- [FACT] A returned non-Money Bill, if repassed, is presented again and the constitutional text states that the Governor shall not withhold assent.
- [FACT] Reservation is mandatory where the Bill would so derogate from High Court powers as to endanger its constitutional position.
- [FACT] Under Article 201, the President may assent, withhold, or direct return of a non-Money Bill.
- [FACT] Repassage after presidentially directed return does not compel presidential assent.
- [CURRENT] The November 2025 Article 143 opinion rejects rigid court-written timelines and deemed assent, but prolonged unexplained inaction remains amenable to limited judicial review and a direction to decide.

- [LIMIT] A court may require constitutional action; it does not choose the substantive option for the Governor or President.

CLOSING RECALL FLOW - GOVERNOR'S ASSENT UNDER ARTICLES 200-201

SUBTOPIC CLOSURE FLOW | Governor's assent under Articles 200-201

1. KEY TERMS / DEFINITIONS

Governor's assent under Articles 200-201 · Article 201 · Article 200 · Article 143 · Governor's · 200-201

2. MECHANISM / ARGUMENT

Its principal consequence is that Under Article 201, the President may assent, withhold, or direct return of a non-Money Bill.

3. CONSEQUENCE / CONTRAST

Repassage after presidentially directed return does not compel presidential assent. [CURRENT] The November 2025 Article 143 opinion rejects rigid court-written timelines and deemed assent, but prolonged unexplained inaction remains amenable to limited judicial review and a direction to decide.

4. UPSC TRAP / ANSWER-USE

The decisive contrast is between Repassage after presidentially directed return does not compel presidential assent and A court may require constitutional action; it does not choose the substantive option for the Governor or President.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: The November 2025 Article 143 opinion rejects rigid court-written timelines and deemed assent, but prolonged unexplained inaction remains amenable to limited judicial review and a direction to decide.

SESSION 17 - ANNUAL FINANCIAL STATEMENT AND DEMANDS FOR GRANTS

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Annual financial statement and demands for grants denotes the constitutional rules and institutional links organised around Annual Financial Statement: Article 202.

Technical definition: The decisive contrast is between The Governor causes the annual financial statement to be laid before the House or Houses and Charged expenditure is discussed but not voted.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

State financial procedure subjects grants and withdrawals to Assembly control, while charged expenditure may be discussed but is not put to vote.

MUST-WRITE KEYWORDS

- Annual financial statement
- demands for grants
- Supplementary grant
- Original amount insufficient
- Additional grant
- New service not contemplated

How to use them: Frame the answer through Annual financial statement; define demands for grants, connect Supplementary grant with Original amount insufficient to explain the mechanism, and use Additional grant for the decisive comparison or qualification.

Annual financial statement and demands for grants denotes the constitutional rules and institutional links organised around Annual Financial Statement: Article 202. Annual financial statement and demands for grants operates through charged expenditure identified, connected with demands for grants voted by Assembly: Article 203. The operative mechanism matters because appropriation Bill: Article 204. Its principal consequence is that finance/financial legislation: Article 207. The decisive contrast is between [FACT] The Governor causes the annual financial statement to be laid before the House or Houses and [FACT] Charged expenditure is discussed but not voted. The exam-safe limitation is that [FACT] Demands for grants are submitted only to the Assembly and require the Governor's recommendation.

ANNUAL FINANCIAL STATEMENT AND DEMANDS FOR GRANTS

AXIS 1

- Annual Financial Statement: Article 202
- charged expenditure identified
- demands for grants voted by Assembly: Article 203

AXIS 2

- Appropriation Bill: Article 204
- Finance/financial legislation: Article 207
- [FACT] The Governor causes the annual financial statement to be laid before the House or Houses.

AXIS 3

- [FACT] Charged expenditure is discussed but not voted.
- [FACT] Demands for grants are submitted only to the Assembly and require the Governor's recommendation.

Topic-specific visual map: Annual financial statement and demands for grants.

Visual 26 - State budget chain

Annual Financial Statement: Article 202

|
charged expenditure identified

|
demands for grants voted by Assembly: Article 203

|
Appropriation Bill: Article 204

|
Finance/financial legislation: Article 207

- [FACT] The Governor causes the annual financial statement to be laid before the House or Houses.
- [FACT] Charged expenditure is discussed but not voted.
- [FACT] Demands for grants are submitted only to the Assembly and require the Governor's recommendation.
- [FACT] No money may be withdrawn from the Consolidated Fund of the State except under appropriation made by law.
- [FACT] The Council cannot vote demands for grants.

Visual 27 - Grants toolkit

Device	Purpose
Supplementary grant	Original amount insufficient
Additional grant	New service not contemplated
Excess grant	Expenditure exceeded authorised amount
Vote on account	Short-term expenditure pending full budget
Vote of credit	Unexpected demand of indefinite character
Exceptional grant	Special purpose outside current service

CLOSING RECALL FLOW - ANNUAL FINANCIAL STATEMENT AND DEMANDS FOR GRANTS

SUBTOPIC CLOSURE FLOW | Annual financial statement and demands for grants

1. KEY TERMS / DEFINITIONS

Annual financial statement · demands for grants · Supplementary grant · Original amount insufficient · Additional grant · New service not contemplated

2. MECHANISM / ARGUMENT

The decisive contrast is between The Governor causes the annual financial statement to be laid before the House or Houses and Charged expenditure is discussed but not voted.

3. CONSEQUENCE / CONTRAST

Its principal consequence is that finance/financial legislation: Article 207.

4. UPSC TRAP / ANSWER-USE

Do not miss this limiting distinction: the exam-safe limitation is that Demands for grants are submitted only to the Assembly...

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: State financial procedure subjects grants and withdrawals to Assembly control, while charged expenditure may be discussed but is not put to vote.

SESSION 18 - FINANCIAL BILLS AND RECOMMENDATION

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Financial Bills and recommendation denotes the constitutional rules and institutional links organised around Question Money Bill Wider Financial Bill.

Technical definition: The decisive contrast is between Speaker certification Conclusive constitutional role Not a Money Bill certificate unless Article 199 test met and Do not label every Bill involving expenditure a Money Bill.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Distinguishing Money Bills from wider Financial Bills determines initiation, recommendation and Council powers, preventing ordinary expenditure provisions from receiving an exceptional route.

MUST-WRITE KEYWORDS

- **Financial Bills**
- **recommendation**
- **Contains only Article 199 matters**
- **Yes**
- **May contain other matters**
- **Assembly only**

How to use them: Frame the answer through Financial Bills; define recommendation, connect Contains only Article 199 matters with Yes to explain the mechanism, and use May contain other matters for the decisive comparison or qualification.

Financial Bills and recommendation denotes the constitutional rules and institutional links organised around Question Money Bill Wider Financial Bill. Financial Bills and recommendation operates through Contains only Article 199 matters Yes May contain other matters, connected with Introduction Assembly only Constitutionally restricted as applicable. The operative mechanism matters because governor recommendation Required Required for specified financial provisions. Its principal consequence is that council power Recommendation only, 14 days Ordinary-Bill route may apply. The decisive contrast is between Speaker certification Conclusive constitutional role Not a Money Bill certificate unless Article 199 test met and [LIMIT] Do not label every Bill involving expenditure a Money Bill. The exam-safe limitation is that [ANALYSIS] Classification matters because it determines the Council's power and the available legislative route. **Visual 28 - Money Bill versus Financial Bill**

Question	Money Bill	Wider Financial Bill
Contains only Article 199 matters	Yes	May contain other matters
Introduction	Assembly only	Constitutionally restricted as applicable
Governor recommendation	Required	Required for specified financial provisions
Council power	Recommendation only, 14 days	Ordinary-Bill route may apply
Speaker certification	Conclusive constitutional role	Not a Money Bill certificate unless Article 199 test met

- [LIMIT] Do not label every Bill involving expenditure a Money Bill.
- [ANALYSIS] Classification matters because it determines the Council's power and the available legislative route.

CLOSING RECALL FLOW - FINANCIAL BILLS AND RECOMMENDATION

SUBTOPIC CLOSURE FLOW Financial Bills and recommendation			
1. KEY TERMS / DEFINITIONS Financial Bills · recommendation · Contains only Article 199 matters · Yes · May contain other matters · Assembly only	2. MECHANISM / ARGUMENT The exam-safe limitation is that Classification matters because it determines the Council's power and the available legislative route.	3. CONSEQUENCE / CONTRAST Its principal consequence is that council power Recommendation only, 14 days Ordinary-Bill route may apply.	4. UPSC TRAP / ANSWER-USE The decisive contrast is between Speaker certification Conclusive constitutional role Not a Money Bill certificate unless Article 199 test met and Do not label every Bill involving expenditure a Money Bill.
ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Distinguishing Money Bills from wider Financial Bills determines initiation, recommendation and Council powers, preventing ordinary expenditure provisions from receiving an exceptional route.			

SESSION 19 - LEGISLATIVE ACCOUNTABILITY DEVICES

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Legislative accountability devices denotes the constitutional rules and institutional links organised around Zero Hour / special mention.

Technical definition: Daily accountability is broader than government survival: questions, discussions, budget control and committees expose policy to reasons.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

A Legislative Council may question and debate ministers but cannot remove the ministry through no-confidence.

MUST-WRITE KEYWORDS

- **Legislative accountability devices**
- **Legislative**
- **Zero Hour**
- **Its principal consequence**
- **Its**
- **The decisive contrast**

How to use them: Frame the answer through Legislative accountability devices; define Legislative, connect Zero Hour with Its principal consequence to explain the mechanism, and use Its for the decisive comparison or qualification.

Legislative accountability devices denotes the constitutional rules and institutional links organised around Zero Hour / special mention. Legislative accountability devices operates through Calling attention / discussion, connected with ministerial explanation. The operative mechanism matters because adjournment-type devices. Its principal consequence is that censure and disruption of normal business. The decisive contrast is between No-confidence motion and government survival. The exam-safe limitation is that [FACT] Collective responsibility makes Assembly confidence decisive. **Visual 29 - Accountability ladder**

Question Hour

-> information

Zero Hour / special mention

-> urgency

Calling attention / discussion

-> ministerial explanation

Adjournment-type devices

-> censure and disruption of normal business

No-confidence motion

-> government survival

Committees

-> detailed scrutiny

- [FACT] Collective responsibility makes Assembly confidence decisive.
- [FACT] A Legislative Council may question and debate ministers but cannot remove the ministry through no-confidence.
- [ANALYSIS] Daily accountability is broader than government survival: questions, discussions, budget control and committees expose policy to reasons.

- [LIMIT] Exact device names and admissibility conditions vary under State House rules.

CLOSING RECALL FLOW - LEGISLATIVE ACCOUNTABILITY DEVICES

SUBTOPIC CLOSURE FLOW Legislative accountability devices			
1. KEY TERMS / DEFINITIONS Legislative accountability devices · Legislative · Zero Hour · Its principal consequence · Its · The decisive contrast	2. MECHANISM / ARGUMENT Daily accountability is broader than government survival: questions, discussions, budget control and committees expose policy to reasons.	3. CONSEQUENCE / CONTRAST Its principal consequence is that censure and disruption of normal business.	4. UPSC TRAP / ANSWER-USE Do not miss this limiting distinction: the decisive contrast is between No-confidence motion and government survival.
ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: A Legislative Council may question and debate ministers but cannot remove the ministry through no-confidence.			

SESSION 20 - COMMITTEES AND SCRUTINY

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Committees and scrutiny denotes the constitutional rules and institutional links organised around Full House constraints.

Technical definition: Its principal consequence is that clause-level scrutiny.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Legislative committees deepen clause-level and financial scrutiny when plenary time is scarce, although their structures and effectiveness vary substantially across States.

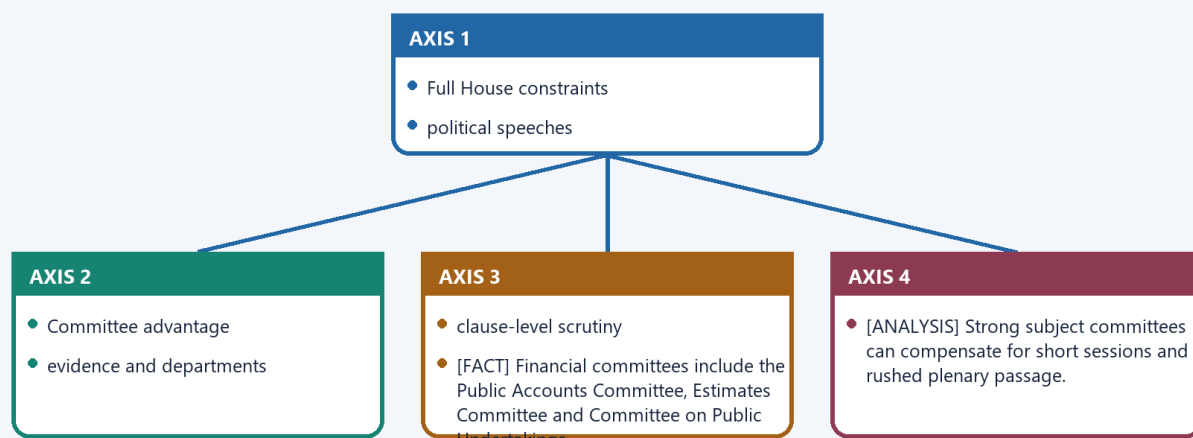
MUST-WRITE KEYWORDS

- Committees
- scrutiny
- Committees and scrutiny
- Full House
- Its principal consequence
- Its

How to use them: Frame the answer through Committees; define scrutiny, connect Committees and scrutiny with Full House to explain the mechanism, and use Its principal consequence for the decisive comparison or qualification.

Committees and scrutiny denotes the constitutional rules and institutional links organised around Full House constraints. Committees and scrutiny operates through political speeches, connected with Committee advantage. The operative mechanism matters because evidence and departments. Its principal consequence is that clause-level scrutiny. The decisive contrast is between [FACT] Financial committees include the Public Accounts Committee, Estimates Committee and Committee on Public Undertakings and [ANALYSIS] Strong subject committees can compensate for short sessions and rushed plenary passage. The exam-safe limitation is that full House constraints.

COMMITTEES AND SCRUTINY



Topic-specific visual map: Committees and scrutiny.

Visual 30 - Why committees matter

Full House constraints

- limited time
- political speeches
- complex Bills

|
v

Committee advantage

- smaller forum
- evidence and departments
- clause-level scrutiny
- cross-party work

- [FACT] Financial committees include the Public Accounts Committee, Estimates Committee and Committee on Public Undertakings.
- [ANALYSIS] Strong subject committees can compensate for short sessions and rushed plenary passage.
- [LIMIT] Committee systems differ across States; do not assume every State mirrors Parliament's department-related standing committee structure.

CLOSING RECALL FLOW - COMMITTEES AND SCRUTINY

SUBTOPIC CLOSURE FLOW | Committees and scrutiny

1. KEY TERMS / DEFINITIONS

Committees · scrutiny · Committees and scrutiny · Full House · Its principal consequence · Its

2. MECHANISM / ARGUMENT

Its principal consequence is that clause-level scrutiny.

3. CONSEQUENCE / CONTRAST

The decisive contrast is between Financial committees include the Public Accounts Committee, Estimates Committee and Committee on Public Undertakings and Strong subject committees can compensate for short sessions and rushed plenary passage.

4. UPSC TRAP / ANSWER-USE

Committee systems differ across States; do not assume every State mirrors Parliament's department-related standing committee structure.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Legislative committees deepen clause-level and financial scrutiny when plenary time is scarce, although their structures and effectiveness vary substantially across States.

SESSION 21 - ANTI-DEFECTION INSIDE THE STATE HOUSE

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Anti-defection inside the State House denotes the constitutional rules and institutional links organised around voluntarily gives up membership.

Technical definition: Its principal consequence is that merger supported by at least 2/3.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

The Tenth Schedule applies within State Houses through Speaker-led decisions subject to judicial review, while only the two-thirds merger defence survives the 91st Amendment.

MUST-WRITE KEYWORDS

- Anti-defection inside the State House
- Anti-defection
- Its principal consequence
- Its
- The decisive contrast
- Amendment

How to use them: Frame the answer through Anti-defection inside the State House; define Anti-defection, connect Its principal consequence with Its to explain the mechanism, and use The decisive contrast for the decisive comparison or qualification.

Anti-defection inside the State House denotes the constitutional rules and institutional links organised around voluntarily gives up membership. Anti-defection inside the State House operates through defies whip without permission/condonation, connected with Independent member. The operative mechanism matters because joins party after six months. Its principal consequence is that merger supported by at least 2/3. The decisive contrast is between [FACT] The 52nd Amendment inserted the Tenth Schedule; the 91st Amendment removed the split exception and [FACT] Only the two-thirds merger defence survives. The exam-safe limitation is that [FACT] Speaker/Chairman decides, subject to judicial review under *Kihoto Hollohan*. **Visual 31 - Tenth Schedule basics**

Party member

- voluntarily gives up membership
- defies whip without permission/condonation

Independent member

- joins any party

Nominated member

- joins party after six months

Exception

- merger supported by at least 2/3
- [FACT] The 52nd Amendment inserted the Tenth Schedule; the 91st Amendment removed the split exception.
- [FACT] Only the two-thirds merger defence survives.
- [FACT] Speaker/Chairman decides, subject to judicial review under *Kihoto Hollohan*.
- [FACT] "Voluntarily giving up" may be inferred from conduct under *Ravi S. Naik*.
- [FACT] *Rajendra Singh Rana* confirms that Speaker inaction can be reviewed.
- [LIMIT] The approximately three-month norm from *Keisham* is not a statutory deadline.

CLOSING RECALL FLOW - ANTI-DEFECTION INSIDE THE STATE HOUSE

SUBTOPIC CLOSURE FLOW | Anti-defection inside the State House

1. KEY TERMS / DEFINITIONS Anti-defection inside the State House · Anti-defection · Its principal consequence · Its · The decisive contrast · Amendment	2. MECHANISM / ARGUMENT Its principal consequence is that merger supported by at least 2/3.	3. CONSEQUENCE / CONTRAST The decisive contrast is between The 52nd Amendment inserted the Tenth Schedule; the 91st Amendment removed the split exception and Only the two-thirds merger defence survives.	4. UPSC TRAP / ANSWER-USE The approximately three-month norm from Keisham is not a statutory deadline.
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ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: The Tenth Schedule applies within State Houses through Speaker-led decisions subject to judicial review, while only the two-thirds merger defence survives the 91st Amendment.

SESSION 22 - LEGISLATIVE COUNCIL VERSUS RAJYA SABHA

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Legislative Council versus Rajya Sabha denotes the constitutional rules and institutional links organised around Dimension Legislative Council Rajya Sabha.

Technical definition: The decisive contrast is between Money Bills Recommends for 14 days Recommends for 14 days and Executive confidence No Union Council responsible only to Lok Sabha.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Legislative Councils resemble Rajya Sabha in permanence and Money Bill weakness, but lack its co-equality in ordinary legislation and its federal constitutional role.

MUST-WRITE KEYWORDS

- **Legislative Council versus Rajya Sabha**
- **Constitutional status**
- **Mandatory Union House**
- **Represents**
- **Mixed local/functional/expert interests**
- **States in Union federation**

How to use them: Frame the answer through Legislative Council versus Rajya Sabha; define Constitutional status, connect Mandatory Union House with Represents to explain the mechanism, and use Mixed local/functional/expert interests for the decisive comparison or qualification.

Legislative Council versus Rajya Sabha denotes the constitutional rules and institutional links organised around Dimension Legislative Council Rajya Sabha. Legislative Council versus Rajya Sabha operates through Constitutional status Optional Mandatory Union House, connected with Represents Mixed local/functional/expert interests States in Union federation. The operative mechanism matters because creation/abolition Article 169 route Cannot be abolished by ordinary law. Its principal consequence is that ordinary Bills Only delays up to about 4 months Co-equal except joint-sitting route. The decisive contrast is between Money Bills Recommends for 14 days Recommends for 14 days and Executive confidence No Union Council responsible only to Lok Sabha. The exam-safe limitation is that special powers No Article 249/312 equivalent Articles 249 and 312. **Visual 32 - Side-by-side comparison**

Dimension	Legislative Council	Rajya Sabha
Constitutional status	Optional	Mandatory Union House
Represents	Mixed local/functional/expert interests	States in Union federation
Creation/abolition	Article 169 route	Cannot be abolished by ordinary law
Ordinary Bills	Only delays up to about 4 months	Co-equal except joint-sitting route
Money Bills	Recommends for 14 days	Recommends for 14 days
Executive confidence	No	Union Council responsible only to Lok Sabha
Special powers	No Article 249/312 equivalent	Articles 249 and 312

- [ANALYSIS] Similar permanence and Money Bill weakness should not hide the Council's deeper inferiority on ordinary legislation and federal purpose.

CLOSING RECALL FLOW - LEGISLATIVE COUNCIL VERSUS RAJYA SABHA

SUBTOPIC CLOSURE FLOW Legislative Council versus Rajya Sabha			
1. KEY TERMS / DEFINITIONS Legislative Council versus Rajya Sabha · Constitutional status · Mandatory Union House · Represents · Mixed local/functional/expert interests · States in Union federation	2. MECHANISM / ARGUMENT The decisive contrast is between Money Bills Recommends for 14 days Recommends for 14 days and Executive confidence No Union Council responsible only to Lok Sabha.	3. CONSEQUENCE / CONTRAST Its principal consequence is that ordinary Bills Only delays up to about 4 months Co-equal except joint-sitting route.	4. UPSC TRAP / ANSWER-USE Similar permanence and Money Bill weakness should not hide the Council's deeper inferiority on ordinary legislation and federal purpose.
ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Legislative Councils resemble Rajya Sabha in permanence and Money Bill weakness, but lack its co-equality in ordinary legislation and its federal constitutional role.			

SESSION 23 - LEGISLATIVE COUNCIL: CASE FOR AND AGAINST

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Legislative Council: case for and against denotes the constitutional rules and institutional links organised around Case for Council Case against Council.

Technical definition: Legislative Council: case for and against operates through second look at legislation can only delay, connected with institutional continuity recurring expenditure.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

The best reform position is conditional: retain where it demonstrably improves scrutiny, reform composition and working, and abolish where it functions only as patronage.

MUST-WRITE KEYWORDS

- **Legislative Council**
- **case for**
- **against**
- **second look at legislation**
- **can only delay**
- **institutional continuity**

How to use them: Frame the answer through Legislative Council; define case for, connect against with second look at legislation to explain the mechanism, and use can only delay for the decisive comparison or qualification.

Legislative Council: case for and against denotes the constitutional rules and institutional links organised around Case for Council Case against Council. Legislative Council: case for and against operates through second look at legislation can only delay, connected with institutional continuity recurring expenditure. The operative mechanism matters because local-body and expert voices indirect/patronage concerns. Its principal consequence is that forum for experienced public figures graduate/teacher categories may be dated. The decisive contrast is between checks Assembly haste may duplicate partisan balance and [LIMIT] "White elephant" is a critique, not a constitutional conclusion. The exam-safe limitation is that case for Council Case against Council.

LEGISLATIVE COUNCIL: CASE FOR AND AGAINST

AXIS 1

- Case for Council Case against Council
- second look at legislation can only delay

AXIS 2

- institutional continuity recurring expenditure
- local-body and expert voices indirect/patronage concerns

AXIS 3

- forum for experienced public figures graduate/teacher categories may be dated
- checks Assembly haste may duplicate partisan balance

AXIS 4

- [LIMIT] "White elephant" is a critique, not a constitutional conclusion.

Topic-specific visual map: Legislative Council: case for and against.

Visual 33 - Retain, reform or abolish

Case for Council	Case against Council
second look at legislation	can only delay
institutional continuity	recurring expenditure
local-body and expert voices	indirect/patronage concerns
forum for experienced public figures	graduate/teacher categories may be dated
checks Assembly haste	may duplicate partisan balance

- [ANALYSIS] A Council's value is empirical and State-specific. A different majority and strong committees may create scrutiny; a mirror-image chamber may add little.
- [ANALYSIS] The best reform position is conditional: retain where it demonstrably improves scrutiny, reform composition and working, and abolish where it functions only as patronage.
- [LIMIT] "White elephant" is a critique, not a constitutional conclusion.

CLOSING RECALL FLOW - LEGISLATIVE COUNCIL: CASE FOR AND AGAINST

SUBTOPIC CLOSURE FLOW | Legislative Council: case for and against

1. KEY TERMS / DEFINITIONS

Legislative Council · case for · against
· second look at legislation · can only delay
· institutional continuity

2. MECHANISM / ARGUMENT

Legislative Council: case for and against operates through second look at legislation can only delay, connected with institutional continuity recurring expenditure.

3. CONSEQUENCE / CONTRAST

The exam-safe limitation is that case for Council Case against Council.

4. UPSC TRAP / ANSWER-USE

Do not miss this limiting distinction: its principal consequence is that forum for experienced public figures graduate/teacher categories may be...

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: The best reform position is conditional: retain where it demonstrably improves scrutiny, reform composition and working, and abolish where it functions only as patronage.

SESSION 24 - STATE LEGISLATIVE PERFORMANCE AND THE SCRUTINY DEFICIT

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: State legislative performance and the scrutiny deficit denotes the constitutional rules and institutional links organised around weak committee referral.

Technical definition: The decisive contrast is between Sitting-day and referral rates change by State and year.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Short sessions, rushed Bills and weak committee support reduce evidence-based scrutiny in State legislatures, making procedural reform central to accountable law-making.

MUST-WRITE KEYWORDS

- the scrutiny deficit
- Short sessions
- minimum annual sitting calendar through rules/convention
- Rushed Bills
- mandatory prior publication except certified urgency
- Weak committees

How to use them: Frame the answer through the scrutiny deficit; define Short sessions, connect minimum annual sitting calendar through rules/convention with Rushed Bills to explain the mechanism, and use mandatory prior publication except certified urgency for the decisive comparison or qualification.

State legislative performance and the scrutiny deficit denotes the constitutional rules and institutional links organised around weak committee referral. State legislative performance and the scrutiny deficit operates through late Bill circulation, connected with executive dominance. The operative mechanism matters because lower legislative legitimacy. Its principal consequence is that [ANALYSIS] State legislatures often face short sessions, weak research support, rushed Bills and uneven committee systems. The decisive contrast is between [LIMIT] Sitting-day and referral rates change by State and year. Use verified figures only when a current source is available and Problem Targeted reform. The exam-safe limitation is that short sessions minimum annual sitting calendar through rules/convention.

Visual 34 - Causal chain

```
Few sitting days
+ disruptions
+ weak committee referral
+ late Bill circulation
|
v
compressed debate
|
v
executive dominance
|
v
lower legislative legitimacy
```

- [ANALYSIS] State legislatures often face short sessions, weak research support, rushed Bills and uneven committee systems.
- [ANALYSIS] The result is not merely fewer speeches; it is less evidence, less opposition input and weaker anticipation of implementation problems.
- [LIMIT] Sitting-day and referral rates change by State and year. Use verified figures only when a current source is available.

Visual 35 - Reform map

Problem	Targeted reform
Short sessions	minimum annual sitting calendar through rules/convention

Problem	Targeted reform
Rushed Bills	mandatory prior publication except certified urgency
Weak committees	subject committees with evidence powers and tracked replies
Speaker partisanship	office convention or independent defection tribunal
Assent delay	public Bill tracker and reasoned constitutional action
Council legitimacy	modernise electorate categories and nomination transparency
Poor research	non-partisan legislative research service

CLOSING RECALL FLOW - STATE LEGISLATIVE PERFORMANCE AND THE SCRUTINY DEFICIT

SUBTOPIC CLOSURE FLOW State legislative performance and the scrutiny deficit			
1. KEY TERMS / DEFINITIONS the scrutiny deficit · Short sessions · minimum annual sitting calendar through rules/convention · Rushed Bills · mandatory prior publication except certified urgency · Weak committees	2. MECHANISM / ARGUMENT The decisive contrast is between Sitting-day and referral rates change by State and year.	3. CONSEQUENCE / CONTRAST Its principal consequence is that State legislatures often face short sessions, weak research support, rushed Bills and uneven committee systems.	4. UPSC TRAP / ANSWER-USE The result is not merely fewer speeches; it is less evidence, less opposition input and weaker anticipation of implementation problems.
ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Short sessions, rushed Bills and weak committee support reduce evidence-based scrutiny in State legislatures, making procedural reform central to accountable law-making.			

SESSION 25 - WOMEN'S RESERVATION, DELIMITATION AND STATE ASSEMBLIES

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Women's reservation, delimitation and State Assemblies denotes the constitutional rules and institutional links organised around first census after commencement.

Technical definition: Its principal consequence is that Reservation is linked to post-census delimitation and is not self-executing merely because the amendment exists.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Reservation is linked to post-census delimitation and is not self-executing merely because the amendment exists.

MUST-WRITE KEYWORDS

- Women's reservation
- delimitation
- Women's reservation, delimitation and State Assemblies
- Women's
- Its principal consequence
- Its

How to use them: Frame the answer through Women's reservation; define delimitation, connect Women's reservation, delimitation and State Assemblies with Women's to explain the mechanism, and use Its principal consequence for the decisive comparison or qualification.

Women's reservation, delimitation and State Assemblies denotes the constitutional rules and institutional links organised around first census after commencement. Women's reservation, delimitation and State Assemblies operates through publication of census figures, connected with delimitation exercise. The operative mechanism matters because reservation activated in Assembly constituencies. Its principal consequence is that [FACT] Reservation is linked to post-census delimitation and is not self-executing merely because the amendment exists. The decisive contrast is between [CURRENT] The 2026 attempt to alter this sequence and use the 2011 Census did not become law and [CURRENT] Census 2027 publication and later delimitation dates are not yet fixed. The exam-safe limitation is that [LIMIT] Do not state that one-third of current Assembly seats are already reserved for women. **Visual**

36 - Current constitutional sequence

106th Amendment
|
first census after commencement
|
publication of census figures
|
delimitation exercise
|
reservation activated in Assembly constituencies

- [FACT] The amendment provides one-third reservation in the Lok Sabha and State Legislative Assemblies, including within SC/ST-reserved seats.
- [FACT] Reservation is linked to post-census delimitation and is not self-executing merely because the amendment exists.
- [CURRENT] The 2026 attempt to alter this sequence and use the 2011 Census did not become law.
- [CURRENT] Census 2027 publication and later delimitation dates are not yet fixed.
- [LIMIT] Do not state that one-third of current Assembly seats are already reserved for women.
- [LIMIT] The provision does not extend to Legislative Councils.

CLOSING RECALL FLOW - WOMEN'S RESERVATION, DELIMITATION AND STATE ASSEMBLIES

SUBTOPIC CLOSURE FLOW Women's reservation, delimitation and State Assemblies			
1. KEY TERMS / DEFINITIONS Women's reservation · delimitation · Women's reservation, delimitation and State Assemblies · Women's · Its principal consequence · Its	2. MECHANISM / ARGUMENT Its principal consequence is that Reservation is linked to post-census delimitation and is not self-executing merely because the amendment exists.	3. CONSEQUENCE / CONTRAST The exam-safe limitation is that Do not state that one-third of current Assembly seats are already reserved for women.	4. UPSC TRAP / ANSWER-USE Do not state that one-third of current Assembly seats are already reserved for women.
ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Reservation is linked to post-census delimitation and is not self-executing merely because the amendment exists.			

SESSION 26 - ARTICLES 208-212: PROCEDURE, LANGUAGE AND JUDICIAL RESTRAINT

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Articles 208-212: procedure, language and judicial restraint denotes the constitutional rules and institutional links organised around 208 Rules of procedure.

Technical definition: The decisive contrast is between Article 212 protects proceedings from judicial inquiry merely on an alleged procedural irregularity and It does not immunise substantive illegality, mala fides or constitutional violations.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Legislative autonomy and judicial review coexist: courts avoid managing internal procedure but remain guardians of constitutional boundaries.

MUST-WRITE KEYWORDS

- Articles 208-212
- procedure
- language
- judicial restraint
- Rules of procedure
- Law regulating financial-business procedure

How to use them: Frame the answer through Articles 208-212; define procedure, connect language with judicial restraint to explain the mechanism, and use Rules of procedure for the decisive comparison or qualification.

Articles 208-212: procedure, language and judicial restraint denotes the constitutional rules and institutional links organised around 208 Rules of procedure. Articles 208-212: procedure, language and judicial restraint operates through 209 Law regulating financial-business procedure, connected with 210 Language in legislature. The operative mechanism matters because 211 Bar on discussion of judges' conduct. Its principal consequence is that 212 Courts not to question procedural irregularity. The decisive contrast is between [FACT] Article 212 protects proceedings from judicial inquiry merely on an alleged procedural irregularity and [LIMIT] It does not immunise substantive illegality, mala fides or constitutional violations. The exam-safe limitation is that 208 Rules of procedure. **Visual 37 - Closing constitutional map**

Article	Subject
208	Rules of procedure
209	Law regulating financial-business procedure
210	Language in legislature
211	Bar on discussion of judges' conduct
212	Courts not to question procedural irregularity

- [FACT] Article 212 protects proceedings from judicial inquiry merely on an alleged procedural irregularity.
- [LIMIT] It does not immunise substantive illegality, mala fides or constitutional violations.
- [ANALYSIS] Legislative autonomy and judicial review coexist: courts avoid managing internal procedure but remain guardians of constitutional boundaries.

CLOSING RECALL FLOW - ARTICLES 208-212: PROCEDURE, LANGUAGE AND JUDICIAL RESTRAINT

SUBTOPIC CLOSURE FLOW | Articles 208-212: procedure, language and judicial restraint

1. KEY TERMS / DEFINITIONS

Articles 208-212 · procedure · language · judicial restraint · Rules of procedure · Law regulating financial-business procedure

2. MECHANISM / ARGUMENT

The decisive contrast is between Article 212 protects proceedings from judicial inquiry merely on an alleged procedural irregularity and It does not immunise substantive illegality, mala fides or constitutional violations.

3. CONSEQUENCE / CONTRAST

Its principal consequence is that 212 Courts not to question procedural irregularity.

4. UPSC TRAP / ANSWER-USE

It does not immunise substantive illegality, mala fides or constitutional violations.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Legislative autonomy and judicial review coexist: courts avoid managing internal procedure but remain guardians of constitutional boundaries.

SESSION 27 - FULL ARTICLES 168-212 RAPID MAP

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Full Articles 168-212 rapid map denotes the constitutional rules and institutional links organised around 168 Constitution of State legislatures.

Technical definition: Technically, Full Articles 168-212 rapid map is analysed by relating Constitution of State legislatures to Creation/abolition of Councils, then testing the relationship through Assembly composition and Council composition.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Institutional context: Because Articles 197-199 make the Council weak, it cannot justify itself through decisional power.

MUST-WRITE KEYWORDS

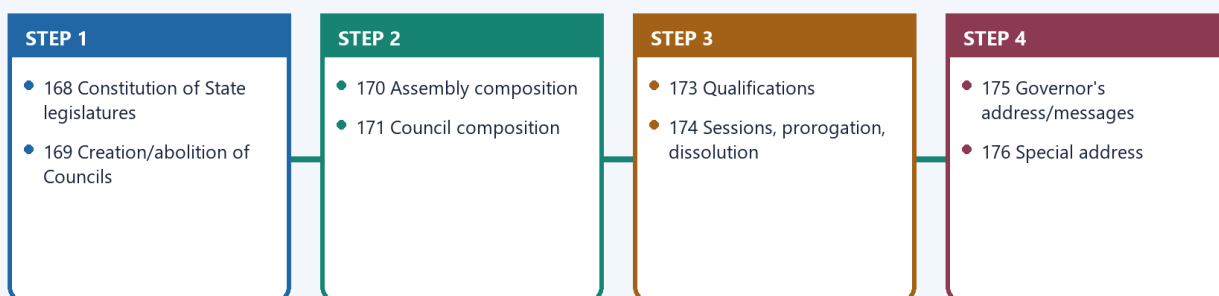
- Full Articles 168-212 rapid map
- Constitution of State legislatures
- Creation/abolition of Councils
- Assembly composition
- Council composition

- Duration

How to use them: Frame the answer through Full Articles 168-212 rapid map; define Constitution of State legislatures, connect Creation/abolition of Councils with Assembly composition to explain the mechanism, and use Council composition for the decisive comparison or qualification.

Full Articles 168-212 rapid map denotes the constitutional rules and institutional links organised around 168 Constitution of State legislatures. Full Articles 168-212 rapid map operates through 169 Creation/abolition of Councils, connected with 170 Assembly composition. The operative mechanism matters because 171 Council composition. Its principal consequence is that 173 Qualifications. The decisive contrast is between 174 Sessions, prorogation, dissolution and 175 Governor's address/messages. The exam-safe limitation is that 176 Special address.

FULL ARTICLES 168-212 RAPID MAP



Topic-specific visual map: Full Articles 168-212 rapid map.

Article	Recall
168	Constitution of State legislatures
169	Creation/abolition of Councils
170	Assembly composition
171	Council composition
172	Duration
173	Qualifications
174	Sessions, prorogation, dissolution
175	Governor's address/messages
176	Special address
177	Rights of ministers and Advocate General
178-181	Assembly presiding officers
182-185	Council presiding officers
186-187	Salaries and secretariat
188	Oath
189	Voting, vacancies and quorum

Article	Recall
190	Vacation of seats
191	Disqualification
192	Decision on disqualification
193	Penalty for unauthorised sitting/voting
194-195	Privileges and salaries
196-197	Ordinary Bills and Council limitation
198-199	Money Bills
200-201	Assent and reserved Bills
202-207	Financial procedure
208-212	Rules, language, judges and courts

CLOSING RECALL FLOW - FULL ARTICLES 168-212 RAPID MAP

SUBTOPIC CLOSURE FLOW Full Articles 168-212 rapid map			
1. KEY TERMS / DEFINITIONS Full Articles 168-212 rapid map · Constitution of State legislatures · Creation/abolition of Councils · Assembly composition · Council composition · Duration	2. MECHANISM / ARGUMENT The decisive contrast is between 174 Sessions, prorogation, dissolution and 175 Governor's address/messages.	3. CONSEQUENCE / CONTRAST Its principal consequence is that 173 Qualifications.	4. UPSC TRAP / ANSWER-USE Do not miss this limiting distinction: the exam-safe limitation is that 176 Special address.
ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Institutional context: Because Articles 197-199 make the Council weak, it cannot justify itself through decisional power.			

BASIC MCQS / REMEDIATION

Original MCQ loop - balanced deterministic non-patterned placement

OM1. State bicameralism

Which statement is correct?

A. Parliament alone may initiate a Council without State action. B. The Governor is outside the State legislature. C. Every State must have two Houses. D. Every State has an Assembly, while only specified States have a Council.

Answer: D.

Explanation: [FACT] Article 168 requires an Assembly in every State; Councils are optional.

OM2. Article 169

Parliament may create a Council after:

A. an Assembly special-majority resolution. B. a simple-majority Council resolution. C. presidential reference to the Supreme Court. D. ratification by half the States.

Answer: A.

Explanation: [FACT] The Assembly initiates through the prescribed special majority.

OM3. Parliamentary majority

The Article 169 law is passed by Parliament:

A. as an ordinary law by simple majority. B. by two-thirds of total membership. C. only in a joint sitting. D. only after State ratification.

Answer: A.

Explanation: [FACT] It is not treated as an Article 368 amendment.

OM4. Council strength

The Council's strength is ordinarily:

A. at least 60. B. not more than one-third of Assembly strength and not below 40. C. fixed by the Governor. D. exactly half the Assembly.

Answer: B.

Explanation: [FACT] Article 171 supplies both limits.

OM5. Local bodies

Approximately what share of a Council is elected by local authorities?

A. One-sixth. B. One-twelfth. C. One-third. D. Two-thirds.

Answer: C.

Explanation: [FACT] Local authorities elect one-third.

OM6. Graduates

Graduates elect:

A. one-third. B. half. C. one-sixth. D. one-twelfth.

Answer: D.

Explanation: [FACT] The graduate and teacher categories each elect one-twelfth.

OM7. Governor nominations

The Governor nominates:

A. all teacher members. B. one-sixth of the Council. C. one-third of the Assembly. D. one-twelfth of the Council.

Answer: B.

Explanation: [FACT] One-sixth is nominated for specified knowledge or experience.

OM8. Council duration

Which is correct?

A. Half retires every three years. B. Council is permanent and one-third retires every two years. C. Council dissolves with the Assembly. D. Council has a five-year collective term.

Answer: B.

Explanation: [FACT] Individual members ordinarily serve six years.

OM9. Minimum age

Minimum age for Assembly membership is:

A. 25. B. 30. C. 35. D. 21.

Answer: A.

Explanation: [FACT] Assembly 25; Council 30.

OM10. Assembly term

The normal Assembly term is:

A. permanent. B. six years. C. five years unless sooner dissolved. D. four years.

Answer: C.

Explanation: [FACT] Article 172 sets five years.

OM11. Quorum

State House quorum is:

A. one-fifth. B. one-tenth, with no minimum. C. exactly ten in every House. D. ten members or one-tenth, whichever is greater.

Answer: D.

Explanation: [FACT] Article 189 contains the ten-member floor.

OM12. Casting vote

The presiding officer:

A. cannot vote in a tie. B. has two ordinary votes. C. always votes first. D. ordinarily has no first vote but has a casting vote on equality.

Answer: D.

Explanation: [FACT] Article 189 provides the casting vote.

OM13. Speaker after dissolution

On Assembly dissolution, the Speaker:

A. becomes Governor. B. continues until immediately before the first meeting of the new Assembly. C. vacates immediately. D. continues for six months regardless of the new House.

Answer: B.

Explanation: [FACT] Article 179 preserves continuity.

OM14. Speaker removal

Removal requires:

A. majority of all then members after 14 days' notice. B. Governor's order. C. simple majority of those present without notice. D. two-thirds of total membership.

Answer: A.

Explanation: [FACT] The effective-majority rule and notice apply.

OM15. Defection adjudicator

Tenth Schedule State-member disqualification is initially decided by:

A. Speaker or Chairman. B. High Court. C. Governor on ECI advice. D. Chief Minister.

Answer: A.

Explanation: [FACT] The presiding officer decides, subject to judicial review.

OM16. Article 192

For a non-defection Article 191 disqualification question, the Governor:

A. acts personally without advice from any institution. B. sends it to Parliament. C. refers it to the Speaker. D. obtains and acts according to the Election Commission's opinion.

Answer: D.

Explanation: [FACT] Article 192 provides this route.

OM17. Ordinary Bill delay

Maximum Council delay across Article 197 stages is approximately:

A. six months. B. one year. C. four months. D. fourteen days.

Answer: C.

Explanation: [FACT] Three months plus one month.

OM18. Joint sitting

For disagreement between State Houses:

A. President chairs a joint sitting. B. no constitutional joint sitting exists. C. Governor always calls a joint sitting. D. Supreme Court resolves amendments.

Answer: B.

Explanation: [FACT] Assembly preference prevails through Article 197.

OM19. Money Bill introduction

A State Money Bill may be introduced:

A. only in the Council. B. only in the Assembly. C. in either House. D. only in Parliament.

Answer: B.

Explanation: [FACT] The Assembly has initiation monopoly.

OM20. Council on Money Bill

The Council:

A. can amend conclusively. B. can reject permanently. C. may recommend within 14 days. D. has three months.

Answer: C.

Explanation: [FACT] Assembly may accept or reject recommendations.

OM21. Money Bill certificate

Who certifies a State Money Bill?

A. Advocate General. B. Governor. C. Council Chairman. D. Assembly Speaker.

Answer: D.

Explanation: [FACT] Article 199 assigns the Speaker.

OM22. Confidence

The State Council of Ministers is collectively responsible to:

A. the Legislative Assembly. B. the Governor personally. C. the Legislative Council. D. both Houses equally.

Answer: A.

Explanation: [FACT] Article 164(2) establishes Assembly responsibility.

OM23. Demands for grants

Demands for grants are voted by:

A. the Council alone. B. the Governor. C. both Houses. D. the Assembly alone.

Answer: D.

Explanation: [FACT] The power of the purse follows the confidence chamber.

OM24. Charged expenditure

Charged expenditure:

A. requires a joint sitting. B. is neither discussed nor voted. C. is voted only by Council. D. may be discussed but is not voted.

Answer: D.

Explanation: [FACT] Article 203 preserves discussion but excludes voting.

OM25. Article 200 return

The Governor may return for reconsideration:

A. a demand for grant. B. a constitutional amendment Bill. C. a non-Money Bill. D. a Money Bill only.

Answer: C.

Explanation: [FACT] A Money Bill cannot be returned under Article 200.

OM26. Mandatory reservation

Reservation for the President is mandatory where a Bill:

A. changes House rules. B. alters a municipal boundary. C. endangers the constitutional position of the High Court by derogating from its powers. D. creates a Council.

Answer: C.

Explanation: [FACT] The second proviso to Article 200 controls.

OM27. Article 201

After a reserved non-Money Bill is returned and repassed:

A. Governor must enact it without presentation. B. President must assent. C. it becomes law automatically. D. presidential assent is not constitutionally compelled.

Answer: D.

Explanation: [FACT] Article 201 differs from the direct Article 200 return loop.

OM28. Assent status

The November 2025 advisory opinion supports:

A. rigid judicial timelines in every case. B. absolute non-justiciability of inaction. C. limited review of prolonged unexplained inaction without deemed assent. D. automatic deemed assent after one month.

Answer: C.

Explanation: [CURRENT] Courts may direct action but cannot invent assent.

OM29. Privilege

Article 194 primarily protects:

A. member speech and votes in the House/committees. B. every private act of a legislator. C. the Governor as a House member. D. all party communications.

Answer: A.

Explanation: [FACT] Privilege is function-linked.

OM30. Article 212

Article 212 bars courts from questioning proceedings merely for:

A. lack of legislative competence. B. mala fides. C. procedural irregularity. D. violation of Fundamental Rights.

Answer: C.

Explanation: [FACT] Substantive constitutional review remains possible.

OM31. Women's reservation

The 106th Amendment reservation applies to:

A. Lok Sabha and State Legislative Assemblies, subject to activation conditions. B. Rajya Sabha and Councils. C. every nominated seat. D. Legislative Councils only.

Answer: A.

Explanation: [FACT/CURRENT] It does not cover Councils and is not operational yet.

OM32. Delimitation trigger

Which is accurate as of 18 August 2026?

A. The failed 2026 Bills are law. B. Delimitation automatically occurred on 1 January 2026. C. Publication of the relevant post-2026 census figures and delimitation remain pending. D. Women's reservation already applies to all Assembly elections.

Answer: C.

Explanation: [CURRENT] Census and delimitation dates remain unresolved.

OM33. Rajya Sabha comparison

Unlike a Council, Rajya Sabha:

A. is optional. B. is directly elected by citizens. C. has federal representation and special Articles 249/312 powers. D. may be abolished by Article 169 law.

Answer: C.

Explanation: [FACT] The Council has no equivalent federal power.

OM34. Governor's special address

Article 176 requires it:

A. after each general election and at the first session of each year. B. only during emergency. C. only in bicameral States. D. before every sitting.

Answer: A.

Explanation: [FACT] These are the two constitutional occasions.

OM35. Assembly dissolution and Bills

Which statement is generally correct?

A. Bills pending in or passed by the Assembly at relevant stages may lapse on dissolution. B. Council Bills always become law. C. Money Bills transfer to Parliament. D. Every Bill survives dissolution.

Answer: A.

Explanation: [FACT] Lapse analysis depends on House and stage.

OM36. Council verdict

The most accurate constitutional description is:

A. permanent veto chamber. B. co-equal federal chamber. C. optional, permanent and mainly suspensive/advisory chamber. D. confidence chamber.

Answer: C.

Explanation: [ANALYSIS] This captures Article 169 status and Articles 197-199 weakness.

Remedial MCQs - strict B -> C -> B -> A rotation

R1. Bicameral-State trap

Which is currently bicameral?

A. Tamil Nadu. B. Odisha. C. Rajasthan. D. Karnataka.

Answer: D.

Remedy: Use KATBUM.

R2. Article 169 trap

The Assembly resolution uses:

A. unanimous vote. B. total-membership majority plus two-thirds present and voting. C. simple majority only. D. half-State ratification.

Answer: B.

Remedy: Special Assembly resolution, ordinary parliamentary law.

R3. Composition trap

Teachers elect:

A. one-third. B. one-twelfth. C. half. D. one-sixth.

Answer: B.

Remedy: $\frac{1}{3} - \frac{1}{12} - \frac{1}{12} - \frac{1}{3} - \frac{1}{6}$.

R4. Council power trap

On an ordinary Bill, Council ultimately:

A. sends it to Supreme Court. B. has absolute veto. C. forces a joint sitting. D. can delay but not defeat Assembly preference.

Answer: D.

Remedy: Three months plus one month; no State joint sitting.

R5. Speaker trap

The Assembly Speaker after dissolution:

A. vacates instantly. B. continues until immediately before the new Assembly's first meeting. C. becomes caretaker Chief Minister. D. continues for a fixed six years.

Answer: B.

Remedy: Continuity is an explicit Article 179 exception.

R6. Quorum trap

Correct quorum:

A. ten or one-tenth, whichever is smaller. B. ten or one-tenth, whichever is greater. C. one-tenth only. D. twenty in every House.

Answer: B.

Remedy: Remember the State ten-member floor.

R7. Disqualification trap

Non-defection Article 191 disputes go to:

A. Governor acting according to ECJ opinion. B. President. C. Speaker without review. D. Chief Minister.

Answer: A.

Remedy: Article 192 differs from the Tenth Schedule.

R8. Privilege trap

Article 194:

A. bars all judicial review. B. protects every criminal act. C. makes Governor a House member. D. protects member speech/votes in legislative functions.

Answer: D.

Remedy: Privilege is member- and function-specific.

R9. Money Bill trap

Council may:

A. veto permanently. B. certify it. C. recommend within 14 days. D. amend conclusively.

Answer: C.

Remedy: Speaker certifies; Assembly decides recommendations.

R10. Confidence trap

No-confidence is effective in:

A. Governor's office. B. Assembly only. C. either House. D. Council only.

Answer: B.

Remedy: Collective responsibility is to the Assembly.

R11. Reservation trap

Women's reservation presently covers constitutionally:

A. Councils only. B. Lok Sabha and Assemblies, but activation remains pending. C. every House immediately. D. Rajya Sabha only.

Answer: B.

Remedy: Separate constitutional provision from operational implementation.

R12. Article 212 trap

Courts remain able to review:

A. substantive constitutional illegality despite Article 212. B. no legislative matter. C. every minor procedural error. D. only Council composition.

Answer: A.

Remedy: Procedural irregularity is not substantive illegality.

PYQS AND ANSWER PRACTICE

Verified routed Mains PYQs

PYQ 1 - UPSC GS-II 2021, Q14 - direct owner

Verified neutral demand: Explain the constitutional provisions for Legislative Councils and review their working. **15 marks | 250 words**

Demand decoding

- "Explain" requires Articles 169 and 171 plus legislative powers.
- "Review" requires a judgement on actual utility and weakness.
- A complete answer must compare the Council with the Assembly and Rajya Sabha.

Model answer

Claim: [FACT] A Legislative Council is an optional, permanent and structurally subordinate second chamber. Its constitutional purpose is reconsideration and wider representation, not equality with the Assembly.

Named evidence: Under Article 169, an Assembly initiates creation or abolition through a total-membership majority plus two-thirds present and voting; Parliament then enacts an ordinary law, which is not an Article 368 amendment. Article 171 limits strength to one-third of the Assembly with a minimum of 40 and distributes membership among local authorities, graduates, teachers, MLAs and Governor-nominated experts. Five-sixths are indirectly elected through STV and one-sixth nominated. Councillors serve six years, with one-third retiring every two years.

Working and analysis: Articles 197-199 make the Council weak. It may delay an ordinary Bill for about four months but cannot veto it; on a Money Bill it can only recommend within 14 days. It neither votes grants nor removes the ministry, which is responsible only to the Assembly. Unlike the Rajya Sabha, it has no federal or Article 249/312-type special power.

Review: It can check haste, preserve continuity and include local/expert voices. Yet dated occupational constituencies, indirect election, cost and patronage create the "ornamental chamber" criticism.

Qualification and verdict: [LIMIT] Utility varies by State and political composition. Councils should be retained where they produce independent scrutiny, but their electorates, nominations and committee work need reform; where they merely duplicate the Assembly, Article 169 abolition remains constitutionally legitimate.

Examiner comment: Do not stop after composition. "Working" demands Articles 197-199, confidence/finance weakness and a reviewed conclusion.

Evidence chain: Article 169 -> Article 171 -> permanence -> Articles 197-199 -> Assembly confidence -> Rajya Sabha comparison -> reform.

Why this earns marks: It answers provision and performance, uses precise fractions and timelines, supplies counter-arguments and ends with a conditional verdict.

PYQ 2 - UPSC GS-II 2023, Q5 - direct owner

Verified neutral demand: Discuss the role of Presiding Officers of State legislatures in maintaining order and impartial conduct of business. **10 marks | 150 words**

Model answer

Claim: [FACT] The Speaker/Chairman is the procedural guardian of the State House, but the constitutional design gives the office powers whose legitimacy depends on visible impartiality.

Named evidence: Articles 178-185 establish the offices and removal safeguards. The presiding officer interprets rules, maintains order, recognises members, decides admissibility, uses a casting vote under Article 189 and, in the

Assembly, certifies Money Bills under Article 199. Under the Tenth Schedule the Speaker/Chairman adjudicates defection.

Analysis: These powers determine who speaks, which motion proceeds, whether a government survives and whether bicameral scrutiny applies. Continued party membership creates a conflict, especially when defection petitions are delayed.

Judicial control: *Kihoto Hollohan* subjects tribunal-like defection decisions to review. *Keisham Meghachandra* urged decisions ordinarily within three months and proposed an independent tribunal.

Qualification and verdict: [LIMIT] The tribunal and deadline are not enacted law. Impartiality therefore needs reasoned rulings, equal rules, stronger conventions and transfer of defection adjudication to a neutral body. The chair is indispensable, but neutrality must be institutional rather than merely personal.

Examiner comment: Link each power to impartial business; avoid a generic list of Speaker functions.

Evidence chain: Articles 178-185 -> Articles 189/199 -> Tenth Schedule -> *Kihoto* -> *Keisham* -> reform.

Why this earns marks: It fits 150 words conceptually, combines functions with the neutrality problem and gives targeted reform.

Routed Prelims demands - provenance without invented answer letters

Prelims route 1 - 2018 GS-I Q39

Verified neutral demand: Vacation and continuation of the Legislative Assembly Speaker's office.

Doctrinal solution

- [FACT] The Speaker vacates on ceasing to be a member, resignation to the Deputy Speaker, or removal by a majority of all then Assembly members after 14 days' notice.
- [FACT] Dissolution does not immediately vacate the Speaker's office; the Speaker continues until immediately before the first meeting of the new Assembly.

Elimination rule: Reject any statement that dissolution instantly ends the Speaker's tenure.

Prelims route 2 - 2019 GS-I Q53

Verified neutral demand: Governor's address/messages and State legislative procedure.

Doctrinal solution

- [FACT] Article 175 permits address and messages.
- [FACT] Article 176 requires the special address after a general election and at the first session of each year.
- [FACT] Article 208 concerns House rules; Article 212 protects against review of procedural irregularity.

Elimination rule: Distinguish the discretionary Article 175 power from the constitutionally required Article 176 occasions.

Prelims route 3 - 2025 GS-I Q59 - cross-owned

Verified neutral demand: Governor's immunity and immunity for words spoken in a State legislature.

Doctrinal solution

- [FACT] Article 361 protects the Governor in specified ways.
- [FACT] Article 194 speech/vote immunity applies to House members.
- [FACT] The Governor is a legislative component under Article 168 but not a House member.

Elimination rule: Do not transfer member privilege to the Governor.

Original solved Mains practice

M1. "The Legislative Council is a revising convenience, not a revising power." Examine. (10 marks, 150 words)

Model answer

Claim: [FACT] A Council offers a second deliberative stage but lacks the authority to defeat the elected Assembly.

Named evidence: Article 197 permits only about four months' delay on ordinary Bills. Articles 198-199 limit it to 14-day recommendations on Money Bills. It cannot vote grants or remove the ministry, which is responsible only to the Assembly.

Analysis: These limits preserve democratic primacy while allowing reconsideration, expert participation and institutional continuity. Different party control may expose drafting flaws or compel public justification.

Qualification: [LIMIT] Delay without committee capacity can become mere duplication, and graduate/teacher constituencies may no longer represent scarce expertise.

Verdict: The Council is valuable when delay produces evidence-based scrutiny; it is ornamental when it only reproduces party patronage. Retention should therefore be linked to composition reform and measurable legislative work.

Evidence chain: Articles 197-199 -> finance/confidence weakness -> scrutiny value -> reform.

M2. Should Legislative Councils be abolished? Discuss with constitutional and democratic arguments. (15 marks, 250 words)

Model answer

Claim: [ANALYSIS] Uniform abolition is as crude as automatic retention because Article 169 deliberately makes State bicameralism optional.

For abolition: Councils impose cost, cannot block ordinary or Money Bills, may provide patronage posts and rest partly on dated occupational electorates. Their existence depends on Assembly initiative and ordinary parliamentary law, confirming that they are not federal essentials.

For retention: Permanence preserves memory; local-body, teacher, graduate and expert categories diversify representation; a second chamber can slow hasty majoritarian legislation and strengthen committees. Where the Council has a different majority, it may force reasons and negotiation.

Named evidence: Articles 169 and 171 establish optionality and composition; Articles 197-199 establish subordination. Rajya Sabha comparison shows that weakness is real but does not prove zero deliberative value.

Reform: Modernise electorates, publish nomination criteria, strengthen committee referral, assess legislative outputs and prevent use as rehabilitation for defeated politicians.

Verdict: Use a State-specific retain-reform-abolish test. Councils that add independent scrutiny deserve reform; those that merely delay and reward patronage may legitimately be abolished through Article 169.

M3. Analyse the constitutional position and impartiality challenge of State Speakers. (15 marks, 250 words)

Model answer

Claim: [FACT] The Speaker is simultaneously procedural judge, constitutional certifier and politically elected member, creating an unavoidable neutrality challenge.

Named evidence: Articles 178-181 establish election, continuity and removal. Article 189 provides the casting vote; Article 199 assigns Money Bill certification; the Tenth Schedule assigns defection adjudication. *Kihoto Hollohan* subjects this tribunal role to review. *Keisham Meghachandra* urged decisions ordinarily within three months and an independent tribunal. *Subhash Desai* requires recognition of the political party's authorised whip.

Analysis: Agenda control, recognition and delayed disqualification can alter confidence arithmetic. Party membership means the adjudicator may have an institutional stake in the outcome.

Counterpoint: The office needs decisional authority to preserve order, and excessive external intervention may weaken House autonomy.

Reform: Require reasoned orders, equal scheduling rules, transparent recognition decisions, strong removal safeguards and transfer defection disputes to a neutral tribunal.

Verdict: The Speaker should remain master of procedure, but not final partisan judge of government survival. Institutional separation is stronger than appeals to personal restraint.

M4. Compare the legislative powers of a State Assembly and Legislative Council. (15 marks, 250 words)

Model answer

Claim: [FACT] State bicameralism is formally dual but functionally Assembly-dominant.

Ordinary legislation: Either House may ordinarily initiate, but Article 197 allows the Council only three months plus one month of delay; there is no joint sitting.

Finance: Money Bills originate only in the Assembly on recommendation; the Council has 14 days to recommend. Demands for grants are voted only by the Assembly.

Executive accountability: Ministers may participate in either House, but collective responsibility and no-confidence belong only to the Assembly.

Constitutional status: The Assembly can initiate Council creation or abolition under Article 169. Council members neither elect the President nor possess a Rajya Sabha-like federal role.

Counterpoint: The Council is permanent and can debate, question ministers, initiate non-Money Bills and add expert/local representation.

Verdict: The Assembly decides; the Council advises and delays. This asymmetry protects direct democratic control but makes Council legitimacy depend on the quality of scrutiny rather than formal power.

M5. "State legislative decline strengthens executive federalism at the cost of representative federalism." Analyse. (15 marks, 250 words)

Model answer

Claim: [ANALYSIS] When State Houses sit briefly, scrutinise few Bills and rely on weak committees, policy shifts from elected deliberation toward cabinets, bureaucracy and Union-State executive bargaining.

Mechanism: Rushed Bills reduce opposition and stakeholder input. Weak financial scrutiny lowers departmental accountability. Ordinances and delegated legislation enlarge executive law-making. Limited research support makes members dependent on departments. Intergovernmental decisions then occur through councils, ministries and party leadership rather than State legislatures.

Constitutional evidence: Articles 168-212 create a complete legislative and financial-control structure; Article 164(2) makes the executive responsible to the Assembly. A weak Assembly therefore hollows the responsible-government link even if formal confidence survives.

Qualification: [LIMIT] Executive coordination is necessary in a complex federation, and sitting-day performance varies widely across States.

Reform: Adopt predictable calendars, pre-legislative publication, subject committees, non-partisan research, post-legislative review and tracked government responses.

Verdict: Strong State autonomy requires not only powerful State executives but capable State legislatures. Representative federalism begins inside each State House.

M6. Explain how Articles 200-201 balance State democracy, constitutional scrutiny and Union oversight. (15 marks, 250 words)

Model answer

Claim: [FACT] Articles 200-201 make assent a constitutional checkpoint rather than a second political mandate.

Mechanism: The Governor may assent, withhold, return a non-Money Bill or reserve it. Repassage after direct return normally closes withholding. Reservation is mandatory where High Court powers are endangered. For a reserved Bill, the President may assent, withhold or direct return; repassage does not compel assent.

Analysis: Return enables State reconsideration, mandatory reservation protects judicial structure and presidential consideration provides Union oversight where the Constitution contemplates it. Yet unexplained delay suspends an

elected legislature without taking an accountable decision.

Current control: [CURRENT] The November 2025 Article 143 opinion rejects rigid judicial deadlines and automatic deemed assent while permitting limited review of prolonged unexplained inaction.

Qualification: [LIMIT] It is advisory and did not overrule the April judgment. Courts may direct decision, not dictate the option.

Verdict: Federal balance requires prompt, reasoned constitutional choice: scrutiny without pocket veto and review without judicial substitution.

M7. Evaluate the case for reforming Legislative Council composition. (20 marks, 250 words)

Model answer

Claim: [ANALYSIS] Article 171's mixed design sought expertise and local representation, but its legitimacy depends on whether twentieth-century categories still serve democratic scrutiny.

Strengths: Local-authority members connect decentralisation to State law-making. Graduate and teacher constituencies may add policy knowledge. MLA-elected and nominated members bring experience and permit representation outside mass elections. STV supports proportionality.

Weaknesses: Graduate status is no longer a narrow expertise proxy; teacher constituencies exclude other public-service professions; electoral rolls and turnout may be weak; nominations may become partisan patronage; MLA-elected seats can rehabilitate defeated politicians.

Institutional context: Because Articles 197-199 make the Council weak, it cannot justify itself through decisional power. It must justify itself through better debate, committees and representation.

Reforms: Update occupational categories after evidence review, strengthen local-body voice, publish objective nomination criteria, require conflict disclosure, invest in research and measure committee/Bill contributions.

Qualification: [LIMIT] Article 171 redesign needs national constitutional/parliamentary action; State-specific experimentation is constrained.

Verdict: Reform should preserve plural representation while replacing inherited status categories with transparent, contemporary expertise and democratic linkage.

M8. Assess how delimitation and women's reservation will reshape State Assemblies. (20 marks, 250 words)

Model answer

Claim: [CURRENT] Delimitation and one-third women's reservation could transform Assembly size, constituency boundaries, party recruitment and federal representation, but neither transformation is operational yet.

Constitutional sequence: The 84th Amendment freeze lasts until publication of the first census after 2026. The 106th Amendment links women's reservation in the Lok Sabha and Assemblies to the first census after commencement and subsequent delimitation. Reservation includes SC/ST sub-reservation and seat rotation.

Potential effects: Fresh boundaries may correct population disparities but create North-South and population-control concerns. Larger or redrawn Assemblies may alter ministry caps, constituency workload and regional balance. Women's reservation can broaden descriptive representation and party pipelines but rotation may weaken constituency continuity.

Current evidence: [CURRENT] The 2026 Bills proposed using the 2011 Census and changing the sequence but failed to become law. Census 2027 publication and delimitation dates remain unknown.

Qualification: [LIMIT] No current seat projection is legally operative, and Councils are outside the reservation.

Verdict: Legitimacy needs transparent criteria, federal consultation, timely census publication and safeguards against penalising successful population stabilisation. Representation reform must expand inclusion without converting demographic change into federal distrust.

OPTIONAL ADVANCED DEPTH - NOT REQUIRED FOR A CORE ANSWER

28. Why optional bicameralism differs from federal bicameralism

Why optional bicameralism differs from federal bicameralism denotes the constitutional rules and institutional links organised around [ANALYSIS] Rajya Sabha is built into the Union's federal architecture; a Council is created only when a State and Parliament choose it. Why optional bicameralism differs from federal bicameralism operates through [ANALYSIS] Council electorates are functionally heterogeneous rather than State-representative, connected with [ANALYSIS] Its weakness on ordinary Bills means bicameralism supplies delay without final bargaining equality. The operative mechanism matters because [LIMIT] Weakness does not equal uselessness. Even delay may expose drafting flaws, enable public debate or force compromise. Its principal consequence is that [ANALYSIS] Rajya Sabha is built into the Union's federal architecture; a Council is created only when a State and Parliament choose it. The decisive contrast is between [ANALYSIS] Rajya Sabha is built into the Union's federal architecture; a Council is created only when a State and Parliament choose it and [ANALYSIS] Rajya Sabha is built into the Union's federal architecture; a Council is created only when a State and Parliament choose it. The exam-safe limitation is that [ANALYSIS] Rajya Sabha is built into the Union's federal architecture; a Council is created only when a State and Parliament choose it.

- [ANALYSIS] Rajya Sabha is built into the Union's federal architecture; a Council is created only when a State and Parliament choose it.
- [ANALYSIS] Council electorates are functionally heterogeneous rather than State-representative.
- [ANALYSIS] Its weakness on ordinary Bills means bicameralism supplies delay without final bargaining equality.
- [LIMIT] Weakness does not equal uselessness. Even delay may expose drafting flaws, enable public debate or force compromise.

29. The democratic case against occupational constituencies

The democratic case against occupational constituencies denotes the constitutional rules and institutional links organised around [ANALYSIS] Graduate and teacher constituencies were designed to draw specialised voices into legislation. The democratic case against occupational constituencies operates through [ANALYSIS] Expansion of higher education weakens the historical claim that graduates form a small expert class, connected with [ANALYSIS] Unequal functional franchise can appear inconsistent with universal political equality even while constitutionally valid. The operative mechanism matters because [LIMIT] Reform requires constitutional/parliamentary action; a State House cannot unilaterally rewrite Article 171. Its principal consequence is that [ANALYSIS] Graduate and teacher constituencies were designed to draw specialised voices into legislation. The decisive contrast is between [ANALYSIS] Graduate and teacher constituencies were designed to draw specialised voices into legislation and [ANALYSIS] Graduate and teacher constituencies were designed to draw specialised voices into legislation. The exam-safe limitation is that [ANALYSIS] Graduate and teacher constituencies were designed to draw specialised voices into legislation.

- [ANALYSIS] Graduate and teacher constituencies were designed to draw specialised voices into legislation.
- [ANALYSIS] Expansion of higher education weakens the historical claim that graduates form a small expert class.
- [ANALYSIS] Unequal functional franchise can appear inconsistent with universal political equality even while constitutionally valid.
- [ANALYSIS] Reform options include updating eligibility, widening professional representation, strengthening local-body representation or redesigning nomination.
- [LIMIT] Reform requires constitutional/parliamentary action; a State House cannot unilaterally rewrite Article 171.

30. Presiding officer reform options

Presiding officer reform options denotes the constitutional rules and institutional links organised around Option Strength Limitation. Presiding officer reform options operates through Resign party membership symbolic and behavioural neutrality difficult without legal/conventional support, connected with Independent tribunal for defection removes direct partisan conflict requires constitutional or legislative redesign. The operative mechanism matters because fixed statutory timeline reduces strategic delay complex cases may need flexibility. Its principal consequence is that reasoned published orders improves review and legitimacy does not remove partisan incentive. The decisive contrast is between Stable tenure and removal safeguards protects chair from executive pressure may also insulate misconduct and Option Strength Limitation. The exam-safe limitation is that option Strength Limitation.

PRESIDING OFFICER REFORM OPTIONS

AXIS 1

- Option Strength Limitation
- Resign party membership symbolic and behavioural neutrality difficult without legal/conventional support

AXIS 2

- Independent tribunal for defection removes direct partisan conflict requires constitutional or legislative redesign
- Fixed statutory timeline reduces strategic delay complex cases may need flexibility

AXIS 3

- Reasoned published orders improves review and legitimacy does not remove partisan incentive
- Stable tenure and removal safeguards protects chair from executive pressure may also insulate misconduct

Topic-specific visual map: Presiding officer reform options.

Option	Strength	Limitation
Resign party membership	symbolic and behavioural neutrality	difficult without legal/conventional support
Independent tribunal for defection	removes direct partisan conflict	requires constitutional or legislative redesign
Fixed statutory timeline	reduces strategic delay	complex cases may need flexibility
Reasoned published orders	improves review and legitimacy	does not remove partisan incentive
Stable tenure and removal safeguards	protects chair from executive pressure	may also insulate misconduct

31. Model answer-writing method

Model answer-writing method denotes the constitutional rules and institutional links organised around NAMED ARTICLE / CASE / CURRENT SOURCE. Model answer-writing method operates through MECHANISM: how it works, connected with ANALYSIS: why it matters. The operative mechanism matters because qUALIFICATION: what it does not prove. Its principal consequence is that vERDICT: answer the directive. The decisive contrast is between Claim: The Council is structurally weak and Named evidence: Articles 197-199. The exam-safe limitation is that mechanism: four-month ordinary-Bill delay and 14-day Money Bill recommendation. **Visual 38 - Evidence discipline**

CLAIM

- > NAMED ARTICLE / CASE / CURRENT SOURCE
- > MECHANISM: how it works
- > ANALYSIS: why it matters
- > QUALIFICATION: what it does not prove
- > VERDICT: answer the directive

Example

- Claim: The Council is structurally weak.
- Named evidence: Articles 197-199.
- Mechanism: four-month ordinary-Bill delay and 14-day Money Bill recommendation.
- Analysis: Assembly preference ultimately prevails.
- Qualification: delay may still improve scrutiny.
- Verdict: advisory second chamber, not co-equal legislature.

CONSOLIDATED REGISTER NOTES

Constitutional skeleton

Article 168: Governor + Assembly + optional Council

Article 169: Council creation/abolition

Articles 170-171: composition

Articles 172-177: duration, qualification, sessions, address

Articles 178-195: officers, members, voting, privilege

Articles 196-201: Bills and assent

Articles 202-207: finance

Articles 208-212: procedure and judicial restraint

Assembly essentials

- Directly elected popular chamber.
- Normally 60-500, subject to special small-State arrangements.
- Minimum age 25.
- Normal term five years unless sooner dissolved.
- Confidence and no-confidence chamber.
- Votes demands for grants and controls Money Bills.
- Speaker continues after dissolution until immediately before the new Assembly's first meeting.

Council essentials

- Exists in six States: Karnataka, Andhra Pradesh, Telangana, Bihar, Uttar Pradesh and Maharashtra.
- Article 169: Assembly special majority, then ordinary parliamentary law.
- Not an Article 368 amendment.
- Strength: maximum one-third of Assembly, minimum 40.
- Composition: 1/3 local bodies, 1/12 graduates, 1/12 teachers, 1/3 MLAs, 1/6 Governor-nominated.
- Five-sixths indirectly elected by STV; one-sixth nominated.
- Permanent; one-third retire every two years; six-year member term.
- Minimum age 30.

Assembly-Council power comparison

Area	Assembly	Council
Ordinary Bill	Final control	Delay up to about four months
Money Bill	Originates and decides	Recommends within 14 days
Grants	Votes	Does not vote
Confidence	Removes ministry	Cannot remove
Dissolution	Dissolvable	Permanent
Council existence	Initiates Article 169 resolution	Cannot secure its own survival

Presiding officers

- Articles 178-181: Speaker and Deputy Speaker.
- Articles 182-185: Chairman and Deputy Chairman.
- Removal: majority of all then members plus 14 days' notice.
- Article 189: ordinary majority; casting vote; quorum ten or one-tenth, whichever is greater.
- Article 199: Speaker certifies State Money Bill.
- Tenth Schedule: Speaker/Chairman decides defection, subject to review.
- *Kihoto*: reviewable tribunal.
- *Keisham*: ordinarily about three months; independent tribunal suggested.
- *Subhash Desai*: political party, not factional legislature party, appoints authorised whip/leader.

Bills and assent

Ordinary bicameral Bill:

Assembly → Council 3 months → Assembly repasses → Council 1 month → Assembly prevails

Money Bill:

Assembly only → Council recommendations in 14 days → Assembly decides

Article 200:

assent / withhold / return non-Money Bill / reserve

Article 201:

President assent / withhold / return non-Money Bill

- No State joint sitting.
- Mandatory reservation where High Court constitutional position is endangered.
- November 2025 opinion: no rigid timelines, no deemed assent, limited review of prolonged unexplained inaction.

Finance

- Article 202: annual financial statement.
- Charged expenditure discussed, not voted.
- Article 203: demands for grants voted only by Assembly.
- Article 204: Appropriation Bill.
- Articles 205-206: supplementary/additional/excess and vote-on-account/credit/exceptional grants.
- Article 207: financial-Bill restrictions and recommendation.

Privilege and courts

- Article 194 protects member speech/votes in legislative functions.
- Governor is not a member and does not receive Article 194 member privilege.
- Article 211 bars discussion of judges' conduct in discharge of duties.
- Article 212 protects against review for procedural irregularity, not substantive unconstitutionality.

Current controls

- Women's reservation covers Lok Sabha and Assemblies, not Councils.
- It is constitutionally provided but not operational as of 18 August 2026.
- 2026 delimitation/women-reservation Bills did not become law.
- Census 2027 publication and delimitation dates remain unknown.
- Never write that delimitation automatically began in 2026.

Answer-writing evidence bank

Claim	Named evidence	Qualification
Council optional	Articles 168-169	Parliament still enacts law
Council heterogeneous	Article 171 fractions	not direct popular mandate
Council weak	Articles 197-199	delay may still improve scrutiny
Assembly dominant	Article 164(2), grants and Money Bills	Council retains debate/question role
Speaker neutrality strained	Tenth Schedule, <i>Kihoto, Keisham</i>	tribunal reform not enacted
Assent is no pocket veto	Articles 200-201, 2025 opinion	no deemed assent or fixed court timeline
Procedure autonomous	Articles 208-212	substantive illegality review survives
Reservation pending	106th Amendment and census-delimitation sequence	Councils excluded

Final verdicts

- **Council:** optional advisory chamber whose legitimacy comes from scrutiny, not veto.
- **Assembly:** elected confidence and finance chamber; centre of responsible State government.
- **Speaker:** indispensable procedural guardian requiring institutional neutrality.
- **State legislative reform:** more sittings, prior publication, committees, research and tracked assent.
- **Representation:** delimitation and women's reservation must combine inclusion with federal fairness.

Last-minute traps

1. Six bicameral States, not seven.
2. Assembly special majority; Parliament simple majority under Article 169.
3. Council minimum 40, not 60.
4. Council formula: 1/3, 1/12, 1/12, 1/3, 1/6.
5. Assembly age 25; Council age 30.
6. Council permanent; Assembly dissolvable.
7. Ordinary-Bill delay about four months; Money Bill 14 days.
8. No joint sitting at State level.
9. State quorum is ten or one-tenth, whichever is greater.
10. Speaker continues after dissolution until the new Assembly first meets.
11. Article 192 route does not govern Tenth Schedule disputes.
12. Governor is part of legislature but not a House member.
13. Article 212 bars procedural-irregularity review, not substantive review.
14. Women's reservation is not operational and does not cover Councils.

COMPLETE TOPIC ASCII MASTER FLOW DIAGRAM

ASCII MASTER FLOW - PANEL 1/9: Articles 168-212 and the choice between one House and two

ARTICLE 168

Governor + Legislative Assembly in every State
 +-- Legislative Council only in a bicameral State.

ARTICLE 169 CREATION / ABOLITION

Assembly special resolution -> Parliament ordinary law -> no Article 368 amendment procedure.
 Parliament is enabled, not legally compelled, by the State resolution.

CURRENT MAP

six Council States: Andhra Pradesh, Telangana, Uttar Pradesh, Bihar, Maharashtra, Karnataka.

DESIGN VERDICT

Assembly carries direct democratic confidence; Council supplies revision and continuity,
 but cannot become a co-equal veto chamber.

ASCII MASTER FLOW - PANEL 2/9: Composition, election, duration and membership controls

ASSEMBLY

direct election | normal five-year term | minimum age 25 | dissolution possible.

COUNCIL

indirect mixed composition under Article 171 | permanent House | one-third retire every two years
| minimum age 30 | total strength normally not more than one-third of Assembly, minimum 40.

COUNCIL ELECTORAL STREAMS

local authorities 1/3 | graduates 1/12 | teachers 1/12 | Assembly members 1/3
| Governor nominates remainder for specified knowledge/experience.

MEMBERSHIP

Article 191 disqualification -> Article 192 Governor decision after ECI opinion;
Tenth Schedule questions follow the presiding-officer route.

ASCII MASTER FLOW - PANEL 3/9: Presiding officers, sessions, quorum and voting

OFFICERS

Assembly Speaker/Deputy Speaker | Council Chairman/Deputy Chairman.
removal requires notice and the constitutional majority stated for the House.

SESSION CHAIN

Governor summons -> sitting -> adjournment / adjournment sine die -> prorogation
-> Assembly alone may be dissolved.
No more than six months may intervene between sessions.

QUORUM

ten members or one-tenth of total membership, whichever is greater.

VOTING

members present and voting -> presiding officer ordinarily no first vote
-> casting vote on equality; vacancies do not invalidate otherwise lawful proceedings.

ASCII MASTER FLOW - PANEL 4/9: Privileges, questions, motions and procedural accountability

ARTICLE 194 PRIVILEGE

functional protection for speech, vote and legislative work; not a personal criminal licence.
Sita Soren (2024) -> bribery is not protected merely because it relates to a vote or speech.

JUDICIAL CONTROL

Raja Ram Pal (2007) -> privilege and expulsion powers remain reviewable for illegality,
unconstitutionality, mala fides or substantive procedural violation.

ACCOUNTABILITY DEVICES

questions | short-duration discussion | calling attention | adjournment motion
| no-confidence/censure | privilege motion | cut motions.

CORE DISTINCTION

no-confidence tests ministry survival in the Assembly; Council cannot make or unmake the ministry.

ASCII MASTER FLOW - PANEL 5/9: Ordinary, Money and financial Bills across unequal Houses

ORDINARY BILL IN BICAMERAL STATE

either House may originate -> Council may delay first passage up to three months
-> Assembly repasses -> Council may delay up to one month
-> Assembly ultimately prevails; no State joint sitting.

MONEY BILL

Assembly only + Governor's recommendation -> Speaker certificate
-> Council has 14 days and recommendations only -> Assembly may accept or reject.

FINANCIAL BILLS

identify the constitutional category; not every Bill involving money is a Money Bill.

ASSENT GATE

Article 200 assent/withhold/return non-Money Bill/reserve
-> Article 201 presidential route for reserved Bills.

ASCII MASTER FLOW - PANEL 6/9: Budget, funds, committees and executive scrutiny

ANNUAL FINANCIAL STATEMENT

charged expenditure discussed but not voted
-> demands for grants voted only by Assembly
-> appropriation authorises withdrawal from Consolidated Fund
-> Finance Bill completes taxation changes.

FUNDS

Consolidated Fund | Contingency Fund | Public Account: distinct custody and vote rules.

COMMITTEE CHAIN

Public Accounts Committee -> appropriation and audit
Estimates Committee -> economy and policy efficiency
Public Undertakings Committee -> State enterprise scrutiny
Departmental/subject committees -> detailed examination.

CONTROL TEST

budget power matters only when members receive time, data, research and follow-up compliance.

ASCII MASTER FLOW - PANEL 7/9: Anti-defection and the ordinance-legislature interface

TENTH SCHEDULE

voluntary giving up | whip breach without permission/condonation | independent joins party
| nominated member joins after six months -> disqualification routes.

ADJUDICATION

Speaker/Chairman decides, subject to judicial review.
Kihoto Hollohan (1992) -> review survives after the decision on recognised grounds.
Nabam Rebia (2016) decided several Governor/Speaker questions;
its Speaker-removal issue was referred in Subhash Desai (2023) and remains unresolved.

ARTICLE 213 INTERFACE

ordinance is a temporary necessity bridge when the session condition is met;
it must return to legislative scrutiny and cannot become a parallel ordinary lawmaking cycle.

ASCII MASTER FLOW - PANEL 8/9: Legislative competence and Article 212's limited shield

COMPETENCE FIRST

Article 246 + Seventh Schedule + special fields -> pith and substance
-> incidental encroachment -> repugnancy where the Concurrent field applies.

ARTICLE 212

court does not invalidate proceedings merely for procedural irregularity
BUT substantive illegality, constitutional violation and jurisdictional error remain reviewable.

ASSENT CURRENT CONTROL

State of Tamil Nadu v. Governor of Tamil Nadu (2025) used timelines/deemed assent on its facts.
In re Assent, Withholding or Reservation of Bills (2025) is advisory and non-binding:
no rigid timelines or automatic deemed assent; prolonged unexplained inaction may be reviewed.

PRIVILEGE, SPEAKER CERTIFICATION AND DEFECTION ARE NOT REVIEW-FREE ZONES.

ASCII MASTER FLOW - PANEL 9/9: Assembly-Council comparison, current reforms and answer synthesis

ASSEMBLY

direct mandate
confidence and grants
may be dissolved
final ordinary-Bill control
Money Bill dominance

COUNCIL

indirect mixed representation
revision and continuity
permanent
maximum delaying power
recommendations within 14 days

CURRENT CONTROLS

106th Amendment commenced but awaits census-linked delimitation for operation.
The failed/withdrawn 2026 Bills are proposals, not law; Census 2027 dates do not fix delimitation.

MAINS SPINE

define chamber design -> cite Article -> compare power -> evidence/problem
-> representation/productivity reform -> stronger committees and sitting calendars
-> effective State legislatures as institutions of representative federalism.